



AcqVault

FIELD GUIDE

VOL

02

The Unlimited Warrant Board

A board-depth study & coaching guide for seasoned contracting professionals

VOLUME 2 · BOARD PREPARATION

Verbatim standards, the approval-authority ladders, branching board questions with follow-ons, and a method for thinking out loud under pressure — for the seasoned 1102 going before the panel.

How to Use This Guide

This is the **advanced** volume — built for experienced contracting professionals preparing for an **unlimited contracting-officer warrant board**. It is deliberately denser and more verbatim than Volume 1. The board does not test whether you can recite a clause; it tests whether you can *identify the right framework, apply it to messy facts, cite the standard, and survive the follow-ups*.

How each topic is built

- **Know Cold** — the precise definitions, elements, and thresholds a board expects you to state without hedging.
- **At the Board** — how to frame the answer, what panelists are really probing, and the trap to avoid.
- **Board Question** — a realistic prompt with the *branching follow-ons* a panel uses to test your depth.
- **Self-Test** — rapid-recall checks; cover the answer, say it out loud, then confirm.

How to study it

- Don't read passively. **Say every answer out loud** — fluency is the deliverable, not recognition.
- Work the branching follow-ons until the next question doesn't surprise you.
- Use the **method in Part I** on every question, even the easy ones, so it's automatic when you're nervous.
- Finish with the **capstone mock-board scenarios** and the **Appendix B / C** quick-reference cards.

⚠ REFERENCE CURRENCY — THE SINGLE MOST IMPORTANT CAVEAT

Federal acquisition rules are being rewritten *right now*. The **Revolutionary FAR Overhaul (RFO)** (Executive Order 14275, 15 Apr 2025) is replacing the legacy FAR, and DoD's DFARS is being reissued in parallel as the **R-DFARS** — part-by-part through *class deviations* (DoD's first tranche took effect 1 Feb 2026; more are rolling out) and formal rulemaking continuing through 2026. Dollar thresholds jumped on **1 Oct 2025**, and the **FY26 NDAA** moves more on **1 Jul 2026** (truthful cost or pricing data, CAS).

Never quote a threshold or citation from memory or an old guide. This volume references the **RFO and R-DFARS** — not the retired FAR/DFARS/DAFFARS — and every number was checked against official public sources as of **June 2026**. **FAR part numbers are retained here as familiar concept anchors** (e.g., "Part 6 competition," "Part 15 negotiation") because the board still speaks in them, but the governing *text* has moved under the RFO/R-DFARS — always confirm the live text at acquisition.gov/far-overhaul and the DoD DARS pages. For DAF-specific procedure, the authoritative resource is the **DAF Contracting Compass** — but it is **CAC-restricted and not reproduced here**.

A NOTE ON LOCAL PROCEDURES & OFFICE SYMBOLS

Approval chains, panel compositions, and office symbols vary by MAJCOM, center, and contracting activity. This guide uses **service-wide role names** (PCO, COCO, SCO, HCA, SPE, Competition Advocate, PEO) rather than any one organization's symbols. **Know your own activity's delegations and clearance matrix cold** — when a number here and your local supplement differ, your local approved policy controls. Lead with the principle; name your local process second.

Table of Contents

PART I · THE BOARD, AND HOW TO PASS IT

I-1	What the Unlimited Warrant Board Tests	5
I-2	How to Answer a Board Question — The Method	5
I-3	Navigating a Full Scenario, A–Z	6
I-4	Your Self-Introduction	9
I-5	The Preparation Roadmap	9

PART II · AUTHORITY, INTEGRITY & RESPONSIBILITY

1	Authority & Ratifications	11
2	Procurement Integrity (PIA)	14
3	Organizational Conflict of Interest (OCI)	16
4	Contractor Responsibility & Qualifications	17

PART III · COMPETITION & ACQUISITION PLANNING

5	CICA, Competition & Justifications (J&A)	20
6	Acquisition Planning & Strategy	23
7	Required Sources	23
8	Market Research	24
9	Commercial Products & Services	25
10	Simplified Acquisition Procedures	27

PART IV · PRICING, NEGOTIATION & CONTRACT TYPE

11	Truthful (Certified) Cost or Pricing Data	28
12	Contract by Negotiation & Source Selection	32
13	Contract Types & Risk	34

PART V · ORDERING VEHICLES & FLEXIBILITIES

14	Fair Opportunity & IDIQ Ordering	37
15	Options	39
16	Interagency Acquisitions & the Economy Act	41
17	Undefinitized Contract Actions (UCAs)	42

PART VI · SOCIOECONOMIC PROGRAMS & RIGHTS

18	Small Business Programs	44
19	Data Rights	46

PART VII · MONEY & DISPUTES

20	Contract Finance & Fiscal Law (TPA)	49
21	Protests	51
22	Requests for Equitable Adjustment & Claims	53

PART VIII · SPECIALIZED VEHICLES & THE LIFECYCLE

23	Research & Development Contracting	56
24	Construction & Service Contracting	58
25	Contract Modifications & Scope	60
26	Government Property	62
27	Terminations	63

PART IX · APPROVAL & CLEARANCE

28	Clearance & Independent Review	66
-----------	--------------------------------	-----------

PART X · CAPSTONE — MOCK-BOARD SCENARIOS

X	Three integrated "How Goes It" branching scenarios	69
----------	--	-----------

PART XI · THE BOARD SCENARIO BANK

XI	Ten distractor-laden scenarios worked A–Z (FTL rocket, PIA, OCI, pricing, source selection, terminations, 8(a), data rights...)	73
-----------	---	-----------

REFERENCE SHELF

A	2025–2026 Regulatory Changes & Updated Thresholds	85
B	Threshold Quick-Reference Card	86
C	Approval-Authority Ladders	87
D	Board Acronym Glossary	88
E	Sources & How to Verify	90
F	The 60-Second Answer Templates	91
G	RFO / R-DFARS Part Map & SME Roster	92

The Board, and How to Pass It

What the panel is really testing — and a repeatable method for answering under pressure.

PART I · 1

What the Unlimited Warrant Board Tests

An unlimited warrant is more than the ability to sign any contract. It is the organization's statement that you make decisions *from a place of knowledge* — that you can think through novel situations, identify the right legal framework, and explain your reasoning clearly under pressure. The board is not a memorization quiz.

You will sit in front of your **Senior Contracting Official (SCO)** and functional experts. They are testing four things at once, and good answers hit all four:

Issue spotting

Can you hear a messy fact pattern and immediately name what's really at stake — authority, competition, integrity, fiscal law?

Framework command

Do you know the governing standard, its elements, the thresholds, and who approves — cold, without fishing?

Judgment

Can you apply the framework to *these* facts and reach a defensible decision, not just recite the rule?

Composure

Can you stay organized through branching follow-ons, concede what you don't know, and tell them how you'd find the answer?

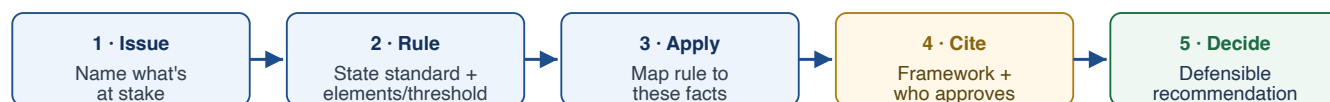
AT THE BOARD · THE META-RULE

When you genuinely don't know, **say so, then say how you would find out** — "I'd confirm the current threshold in the R-DFARS class deviation and coordinate with JA." A confident, sourced "here's how I'd run it down" beats a confident wrong number every time. The unlimited warrant is about *judgment and process*, not perfect recall.

PART I · 2 — THE QUICK METHOD

How to Answer a Board Question — The Method

Use the same five-step spine on *every* question. It keeps you organized when you're nervous, makes your reasoning audible to the panel, and creates natural hooks for the follow-ons you want. Think of it as **I-R-A-C-D**: Issue, Rule, Apply, Cite, Decide.



The I-R-A-C-D spine. Narrate each step out loud so the panel hears your reasoning, not just your conclusion.

- 1 **Issue — name what's really at stake.** Before any detail, label the problem: "This is fundamentally a *competition* question," or "This is an *unauthorized commitment*." Spotting the right framework is half the grade. If two issues are present (e.g., an integrity violation *and* a schedule emergency), say so and sequence them.
- 2 **Rule — state the standard, its elements, and the numbers.** Give the governing test crisply: the elements of ratification, the seven CICA exceptions, the five defective-pricing elements, the TPA test. Include the *current* threshold and who must approve. This is where **Know Cold** pays off.
- 3 **Apply — walk the rule through these facts.** "Here, the Government accepted the supplies, the price can be confirmed fair and reasonable, and funds were available — so ratification is available." Tie each element to a fact. Call out missing facts you'd need.
- 4 **Cite — anchor it and name the approver.** Point to the framework (RFO/R-DFARS part, a D&F/J&A requirement, a clause) and the approval level by *role* (PCO, COCO, HCA, SPE). You don't need a perfect citation string — you need to show you know *where the authority lives* and *who signs*.
- 5 **Decide — make the call and protect the file.** Commit to a recommendation, state the documentation that makes it defensible (MFR, D&F, PNM, determination), and note who you'd coordinate with (JA, FM, small business, the requiring activity). Then *stop talking* and take the follow-up.

AT THE BOARD · DELIVERY HABITS THAT SCORE

- **Think out loud.** Silence reads as a blank. Narrate: "First I'd ask whether this is over SAT, because that changes who approves..."
- **Lead with the current number.** Most thresholds changed on 1 Oct 2025; open with the new figure and note the change — it signals you're current.
- **Bucket your answer.** "There are three things I'd check — authority, funding, and competition." Panels reward structure.
- **Invite the follow-up.** End with the decision and the coordination, not a ramble. A clean stop gives the panel a place to probe — which is what you want.
- **Don't bluff a citation.** "That sits in the Part 15 negotiation rules; I'd pull the exact R-DFARS deviation before relying on it" is a strong answer.

⚠ THE THREE WAYS CANDIDATES LOSE THE ROOM

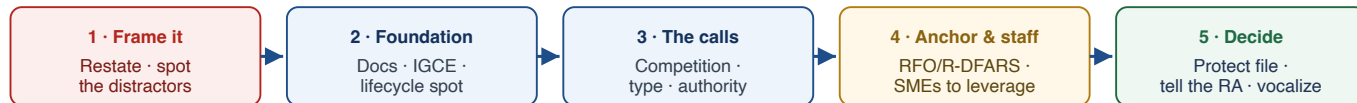
(1) **Jumping to a number before naming the issue** — you answer a question they didn't ask. (2) **Reciting the rule but never applying it** — the panel wants the decision on *these* facts. (3) **Defending a wrong number** — when corrected, accept it gracefully and move on; arguing burns credibility you need for the next ten questions.

PART I · 3 — THE CENTERPIECE

Navigating a Full Scenario, A–Z

I-R-A-C-D answers a single question. But the board's hardest prompts are *full scenarios* — vague, multi-part, and seeded with **distractors** meant to walk you down the wrong path (a sole-source assumption, a shiny incentive, the expiring money, the "just mod it" shortcut). For those, you need a repeatable way to **work the whole acquisition, A–Z**: refuse the bait, build the foundation, make the calls, anchor them in the RFO/R-DFARS,

staff them with the right SMEs, and tell the requiring activity what you actually recommend — out loud, in order.



The five-phase Navigator. Use it on any full scenario; narrate each phase so the panel hears your process. ("RA" = requiring activity.)

Phase 1 — Frame it (don't take the bait)

- 1 **Restate the ask and split fact from opinion.** Say back what you're being asked, and separate what's *established* from what the requiring activity *believes*. "The PM *believes* only one company can do this" is an assumption to test — not a fact to act on.
- 2 **Name the distractors out loud.** What path is the prompt steering you toward — a sole source, a flashy incentive, skipping competition, the wrong color of money, a "minor" mod? Calling the trap is half the grade.
- 3 **List the facts you're missing.** What would you need before deciding — a defensible IGCE basis, market research, the actual requirement, the funding (amount, color, fiscal year)?

Phase 2 — Build the foundation

- 1 **Pull the foundational documents.** The requirement (PWS / SOO / spec), the **IGCE**, **market research**, the **acquisition strategy/plan**, and the **funding** (amount, color, year).
- 2 **Locate yourself in the lifecycle.** Pre-planning → requirements & strategy → solicitation → evaluation → award → administration → closeout. Say where you are and the path forward.

Phase 3 — Make the calls

- 1 **Competition.** Full and open, a set-aside, or an exception? **Test the sole-source claim against market research before you accept it** (CICA — FAR Part 6 / 10 U.S.C. §§3201–3204). If competition is achievable, that's usually your answer.
- 2 **Strategy & risk.** Match contract type and incentives to the risk — and ask whether the incentive is even *valid, feasible, and affordable*, or whether the "requirement" is undefined or unachievable (a scope/feasibility trap). FAR Part 16 / DFARS 216 / Weighted Guidelines.
- 3 **Authority & approvals.** Your warrant, the J&A/D&A tier, the clearance level — and *who signs*.

Phase 4 — Anchor & staff it

- 1 **Name your regulatory anchors.** Which **RFO part(s)** and **R-DFARS part(s)/PGI** you'd be working in, and the key clauses. (Appendix G maps topic → parts.)
- 2 **Name the SMEs you'd leverage — and when.** JA, FM/comptroller, pricing/DCMA/DCAA, small business, engineering/technical & the PM, security/IP, contracting policy & the Competition Advocate, your contracting chief. (Appendix G has the roster.) Boards love "who would you call?"

Phase 5 — Decide & deliver

- 1 **Protect the file.** The determinations and memos that make it defensible: acquisition strategy, market research report, J&A/D&A, IGCE, D&Fs, PNM, clearance.

- 2 **Tell the requiring activity — and vocalize.** State what you actually recommend, *including the pushback* ("I can't sole-source this on a belief — here's what we need"). Structure it, concede what you don't know, and say how you'd run it down.

Who to leverage — the quick roster (full version in Appendix G)

SME / partner	Pull them in for...
Judge Advocate (JA)	Anything novel, sole-source, integrity/OCI, protests, claims, terminations — early.
FM / Comptroller	Color of money, fiscal-year/bona-fide-need, availability, the funding document.
Pricing / DCMA / DCAA	Cost/price analysis, audits, rates (FPRA/ FPRR), realism, defective pricing.
Small Business Specialist / SBA	Rule of Two, set-aside, NAICS, DD 2579, CoC, 8(a)/HUBZone/SDVOSB/WOSB.
Engineering / Technical & the PM	Requirement definition, IGCE basis, technical evaluation, feasibility of an incentive.
Security / IP counsel	Classification, data rights, CUI/CMMC (RFO Part 40), national-security exceptions.
Contracting policy / Competition Advocate	J&A/D&A coordination, clearance, deviations, bridges, peer reviews.

WORKED SETUP — THE "FASTER-THAN-LIGHT ROCKET" PROMPT (FULL VERSION IN PART XI)

"You're the PCO on a new faster-than-light rocket. The IGCE is \$100M. Your PM says only one company can build it, and wants to add an incentive to push it to 2× lightspeed. What do you tell your PM?"

Frame it: two distractors — a *sole-source belief* (the PM's opinion, not a market-research fact) and a 2×-*lightspeed incentive* on a capability that isn't even a defined, demonstrated requirement (you can't incentivize the undefined or the impossible). **So I don't agree to either on the spot.** I tell the PM: I can't sole-source on a belief — we run *market research* first; at \$100M, full and open is the default and a sole-source J&A (6.103-1) lives or dies on that research, approved up the chain (at \$100M on a DoD action, the PEO / Head of the Procuring Activity — the SPE tier starts above \$150M for DoD). And I won't write an incentive for an undefined/unproven outcome — define the requirement and a measurable, achievable target first; only then weigh an incentive type and whether it's worth the risk. Anchors: FAR Part 6 / 10 U.S.C. §3204; Part 15 & 16 for type/incentives; R-DFARS 215/216. SMEs: JA, engineering, pricing, FM, Competition Advocate. *That* is the answer — not "yes, sir."

⚠ THE BOARD'S FAVORITE TRAP

The requiring activity hands you a conclusion ("only one source," "make it 2× faster," "use this money before it expires," "just modify the contract") and watches whether you **adopt it** or **test it**. Unlimited-warrant judgment is testing it — every time. Your value is the business judgment between their need and a defensible action, not order-taking.

PART I · 4

Your Self-Introduction

Most boards open by asking you to introduce yourself. This is the one answer you can fully script — use it to set the tone and frame your readiness.

A strong introduction covers four things, briefly and confidently:

- **Your contracting background** — years in the field, the kinds of buys and organizations you've supported, and your current warrant level.
- **The variety you've worked** — contract types and situations: competitive and sole-source, FFP and cost-type, services and systems, mods, options, terminations.
- **Experience beyond standard FAR-based contracting** — contingency, OTAs, interagency, BAAs, or anything that shows range.
- **The gap your current warrant creates** — the actions you have to route to someone else today, and what an unlimited warrant would let you do for the mission and your people.

AT THE BOARD

Close the intro by articulating **what the unlimited warrant enables** — faster support to the warfighter, fewer hand-offs, more capacity for your team. You're not asking for a credential; you're explaining the mission value of your judgment. Keep it to about ninety seconds.

SAMPLE 90-SECOND SCRIPT (ADAPT TO YOUR OWN RECORD)

"Good morning. I'm a contract specialist with [X] years in Air Force contracting, currently holding a [level] warrant. I've supported everything from simplified acquisitions to major [services / systems] efforts — competitive and sole-source, FFP and cost-type — and I've worked the full lifecycle: source selections, modifications, options, and a [termination / REA / claim]. Beyond standard FAR-based work, I've [done contingency / OTA / interagency / BAA] actions, which stretched how I think about authority and risk. Today, my warrant requires me to route [the actions you can't sign] to another CO — an unlimited warrant would let me close those out directly, cut hand-offs, and get capability to the warfighter faster while freeing my team's capacity. I'm here to show I make those decisions from a place of knowledge."

PART I · 5

The Preparation Roadmap

The path to the board is a progression — each stage builds directly on the one before. Know where you are on it, and what each gate is really checking.

- 1 **Take the required courses.** The formal training prerequisites for the warrant level.
- 2 **Get nominated by your chain of command.** Leadership signals you're ready to be tested.
- 3 **Meet with subject-matter experts.** Demonstrate understanding of each functional area — this is where you find your gaps.
- 4 **Build conversational fluency.** Be able to walk through every topic in this guide conversationally and handle branching follow-ons without notes.
- 5 **Practice scenarios with branching follow-ons.** Use the Board Questions in each section and the capstone mock-board scenarios in Part X.
- 6 **"How Goes It."** In-depth scenarios with many follow-on questions spanning related topics — a dress rehearsal for the integration the board demands.
- 7 **Mock Board.** Demonstrate critical thinking and confirm readiness in front of a stand-in panel.

8 The Warrant Board. In front of the SCO and functional experts — prove it one more time.

THE THREAD THROUGH EVERY STAGE — SELF-STUDY

The knowledge behind an unlimited warrant is a testament that you took the effort to truly grasp contracting's intricacies. Decisions should always come from a place of knowledge. No guide replaces the reps — read it, say it out loud, and work the scenarios until the follow-ons stop surprising you.

Authority, Integrity & Responsibility

Who can bind the Government, how to protect the procurement, and who is fit to receive the award.

SECTION 1

Authority & Ratifications

When someone on the program makes an unauthorized commitment, the PCO must figure out what happened, whether it can be fixed, and how to prevent recurrence. A COR tells the contractor to start new work; a program manager verbally approves a purchase; the contractor performs and now wants to be paid. These are **unauthorized commitments (UACs)** — the Government is not bound without ratification.

KNOW GOLD · THREE KINDS OF AUTHORITY

- **Express** — written and explicit (the warrant, SF 1402). The real, reliable authority.
- **Implied** — reasonably inferred from position to carry out express authority; legally valid.
- **Apparent** — someone acts as if authorized but isn't. **Not binding on the Government.** A COR has *no* authority to commit on price, terms, or schedule — all contractual direction flows through the PCO.

KNOW GOLD · RATIFICATION — ALL ELEMENTS MUST BE SATISFIED

Ratification is an official with actual authority approving a UAC after the fact. **Every one** of these must be true:

- The action **would have been appropriate** if originally taken by a CO.
- The Government **accepted or benefited** from the supplies or services.
- The **ratifying official has actual contractual authority**.
- Price is **confirmed fair and reasonable**.
- Funds were **available at the time of the commitment and remain available**.
- **Legal concurs**.

Process & approval: PCO begins investigation within **30 days**; gathers documentation (proof of receipt, fund availability, correspondence) and a written statement from the person who made the commitment. The ratification statement names the individual, states the dollar value, and confirms it serves the Government's best interest. **Approval: over SAT (\$350K) → HCA (delegable to SCO); under SAT → COCO.**

KNOW GOLD · ELEMENTS OF A VALID CONTRACT

Offer and acceptance · consideration · competency of parties · legality of purpose · certainty of terms.
Missing any one means no enforceable contract.

Prevention

Hold kick-off meetings that establish what Government personnel can and cannot direct; send letters to contractors identifying who has authority to issue direction; and train everyone interacting with the contractor on the limits of their role.

AT THE BOARD

Distinguish **ratification** (fixing a UAC after the fact) from a **GAO/quantum-meruit** outcome (when ratification's elements can't be met, payment may still be pursued on a quantum-meruit basis through the appropriate authority — but that's the fallback, not the goal). If a panelist adds a twist — "funds weren't available that fiscal year" — recognize the element fails and the action *cannot* be ratified as a normal UAC. Panels also probe whether the person who made the commitment was someone who **could have been delegated CO authority** (a Government employee acting in their role) — a true outsider's "commitment" isn't ratifiable. Always tie the answer to the elements.

The COR who said "keep going"

Panel: A COR told the contractor to begin out-of-scope testing. The contractor performed \$120K of work and submitted an invoice. Walk me through it.

HOW TO ANSWER — I-R-A-C-D

"First, **issue**: this is an unauthorized commitment — a COR has no authority to direct new work. **Rule**: the Government isn't bound; the remedy is ratification, which requires all six elements. **Apply**: I'd open an investigation within 30 days, get an MFR from the COR and proof the Government received and benefited from the testing, confirm a fair and reasonable price, and verify funds were available at the time and still are. **Cite/approve**: at \$120K we're under SAT, so the COCO is the ratifying official. **Decide**: if all elements hold and JA concurs, I ratify by written determination; if any fails, I can't ratify and would route to the appropriate authority for a quantum-meruit decision — and either way I issue an authority letter and retrain the COR."

↳ "What if the work was \$600K instead?"

Now it's **over SAT** → **HCA approves** (delegable to SCO), and the scrutiny on fair-and-reasonable price and funds availability goes up. The element analysis is identical.

↳ "The funds expired at the end of last fiscal year — does that change anything?"

Yes — the element "funds were available at the time of the commitment **and remain available**" fails. It can't be ratified as a routine UAC; I'd coordinate with JA/FM on a quantum-meruit path and a current-year funding source.

↳ "How do you keep this from happening again?"

Kick-off meeting defining who can direct work, authority letters to the contractor naming the PCO as the only direction source, and COR/PM training on apparent authority.

NAVIGATE IT

Distractor to expect: "the COR/PM already approved it — just pay." **Anchors**: RFO Part 1 (1.405) / R-DFARS 201.602.

Leverage: JA (ratification vs. quantum meruit), FM (fund availability).

SELF-TEST

1. Name the six elements that must *all* be met to ratify a UAC.

→ Action proper if by a CO; Government accepted/benefited; ratifier has actual authority; price fair & reasonable; funds available then and now; legal concurs.

2. Who ratifies a \$40K UAC? A \$700K UAC?

→ Under SAT → COCO; over SAT → HCA (delegable to SCO).

3. Which type of authority is *not* binding on the Government?

→ Apparent authority.

4. List the five elements of a valid contract.

→ Offer & acceptance, consideration, competency, legality of purpose, certainty of terms — and, for Government formation, an authorized CO acting within the warrant.

Procurement Integrity (PIA)

A Procurement Integrity Act violation occurs when protected source-selection information or contractor proposal data is disclosed to someone unauthorized. The PCO owns the process from discovery through resolution and has **20 business days** to respond.

KNOW COLD · WHAT IS PROTECTED

The PIA (Part 3 integrity rules; legacy FAR 3.104) covers unauthorized disclosure of **source-selection information (SSI)** and **contractor bid/proposal data** that could compromise a source selection. The PCO is the conduit for all such information and must ensure controls are in place *before* source selection begins. Other PIA concerns: contractors attempting to obtain SSI, and industry hiring Government employees in ways that create conflicts (the employment-contact and post-employment restrictions).

KNOW COLD · RESPONSE WITHIN 20 BUSINESS DAYS

1. Notify **legal immediately**.
2. Gather all relevant facts and documents.
3. Notify the receiving contractor to **delete all copies**.
4. Obtain signed **affidavits/NDAs** confirming deletion.
5. Notify all affected parties.
6. Get an **MFR** from the person who made the disclosure.
7. Write a **determination** of whether the disclosure impacts the procurement.

After the determination

No procurement impact

Forward the statement of facts and determination to the **Clearance Approval Authority** and **Competition Advocate** for review and concurrence, pre-coordinated with JA and the contracting policy office. If they concur, the procurement proceeds. If not, it goes to the **HCA** to decide whether to proceed, investigate, cancel, or disqualify an offeror.

Procurement impact

Forward everything through the Competition Advocate, JA, the contracting policy office, and the contracting chief to the **HCA**. The HCA can cancel, disqualify an offeror, or void the contract. **Debarment, suspension, and criminal penalties** are all possible.

PREVENTION PRACTICES

Two-person review before distributing sensitive SSI: a second person, no lower than PCO level, does a page-by-page review using a checklist. Encrypt emails and password-protect documents, sending passwords separately. De-activate email auto-populate. Every source-selection document carries the **SSI cover sheet** (legacy FAR 2.101 / 3.104 definitions).

AT THE BOARD

Lead with the **20-business-day clock** and "**notify legal first**" — panels want to hear urgency and that you don't go it alone. Be crisp that the PCO writes a *determination of impact*, and that the path forks on whether the procurement is impacted. Don't confuse the 20-business-day PIA response with the 3-day debriefing window or the 5/10-day protest stay triggers — panels love to test whether you keep your clocks straight.

BOARD QUESTION · BRANCHING

The forwarded email

Panel: *During an active source selection, you learn a team member emailed a competitor's proposed pricing to an offeror by mistake. What do you do, and on what clock?*

HOW TO ANSWER

"Issue: potential PIA violation — disclosure of contractor proposal data. **Rule:** I own the response and have 20 business days. **Apply:** I notify JA immediately, preserve and gather the facts, direct the receiving offeror to delete all copies and get a signed affidavit/NDA, notify affected parties, obtain an MFR from the sender, and write a determination of whether this impacts the procurement. **Cite/approve:** if no impact, statement and determination go to the Clearance Approval Authority and Competition Advocate (coordinated with JA/policy); if impacted, it elevates to the HCA, who may cancel, disqualify, or void. **Decide:** I'd recommend based on whether the offeror could have gained a competitive advantage."

↳ *"The offeror swears they deleted it without reading it — does that close it?"*

It informs the impact determination but doesn't end the process — I still document, get the affidavit, and write the determination. Perceived compromise can still taint the procurement.

↳ *"Who can void the contract if one had already been awarded?"*

The **HCA**. Consequences can extend to debarment, suspension, and criminal referral.

↳ *"How would you have prevented it?"*

Rule-of-Two page-by-page review before distribution, encryption with separately-sent passwords, SSI cover sheets, and disabling email auto-populate.

SELF-TEST

1. How long does the PCO have to respond to a suspected PIA violation?
→ 20 business days.
2. First action on discovery?
→ Notify legal immediately.
3. Two information categories the PIA protects?
→ Source-selection information (SSI) and contractor bid/proposal data.
4. Who decides when a disclosure *impacts* the procurement and it elevates?
→ The HCA (after PCO determination + CA/JA/policy coordination).

Organizational Conflict of Interest (OCI)

When a contractor's other activities prevent it from competing fairly or rendering impartial assistance, there is an OCI. Identify it early, determine whether it can be neutralized or mitigated, and document the decision **before solicitation**. Actual and perceived conflicts are treated the same.

KNOW GOLD · THREE TYPES OF OCI

- **Impaired Objectivity** — work on one contract would benefit another, or the contractor evaluates itself (e.g., a support contractor evaluating its own company's proposal). *Most likely to be waived.*
- **Unequal Access to Non-Public Information** — the contractor holds competitors' proprietary data, creating unfair advantage. **No bias required** — just the information imbalance.
- **Biased Ground Rules** — the contractor writes the requirements/SOW for a contract it will then compete on. *Most difficult to mitigate; contractor exclusion is often the result.*

KNOW GOLD · THE THREE TOOLS (IN ORDER OF PREFERENCE)

Avoid (exclude the source or remove the conflicted work) · **Neutralize** (allow participation but level the playing field so no offeror is unfairly advantaged — e.g., release the conflicted information to all offerors) · **Mitigate** (reduce impact to an acceptable level via a formal mitigation plan). Start with **white papers** to assess feasibility before requiring a full plan. Per legacy FAR 9.504(c), before issuing a solicitation with significant OCI potential, recommend a course of action to the HCA. **OCI issues arising during source selection are not "Discussions."**

A typical mitigation-plan review (service-wide pattern)

Local panel names and office symbols vary; the flow is consistent:

- 1 **Contractor submits** a mitigation plan to the PCO.
- 2 **PCO reviews** and forwards with comments to **JA** for legal review.
- 3 **Policy/competition office** convenes an **OCI review panel** (JA, contracting chief, policy, the reviewing/OSF official, and the SCO as applicable).
- 4 **Panel makes recommendations** and returns them to the PCO.
- 5 **PCO makes the final decision** — the PCO has final say. *Stress this at the board.* If acceptable, close with industry; if not, request changes and resubmission.

⚠ WHEN OCI CANNOT BE MITIGATED

The contractor is prohibited from performing the conflicted work. A **waiver** is available only if the benefit to the Government outweighs the OCI, and it requires **HCA approval (non-delegable)**. If a contractor protests a waiver, GAO is likely to dismiss.

The SETA who wrote the SOW

Panel: *A systems-engineering support contractor that helped write your SOW now wants to bid on the production contract. Concern?*

HOW TO ANSWER

"Issue: this is a *Biased Ground Rules* OCI — the hardest to mitigate because they shaped the very requirement they'd compete under. **Rule:** identify, then Avoid / Neutralize / Mitigate, documented before solicitation; actual and perceived are treated alike. **Apply:** I'd likely *exclude* them from the competition unless a convincing mitigation exists, and I'd recommend a course of action to the HCA before releasing the solicitation. **Decide:** exclusion or, if the benefit truly outweighs, an HCA-approved non-delegable waiver — but for biased ground rules that's a steep hill."

↳ *"They say they'll wall off the team — enough?"*

For biased ground rules, a firewall rarely cures it because the advantage is baked into the requirement. White-paper it, but exclusion is the likely outcome.

↳ *"Different facts — they merely had access to a competitor's cost data. Which OCI?"*

Unequal access to non-public information — no bias needed, just the imbalance; often mitigable by removing/firewalling the data and the people.

↳ *"Who signs the waiver, and can you delegate it?"*

The **HCA**; **non-delegable**.

SELF-TEST

1. Name the three OCI types and which is hardest to mitigate.
→ Impaired objectivity, unequal access, biased ground rules; biased ground rules is hardest.
2. The three mitigation tools, in order?
→ Avoid, Neutralize, Mitigate.
3. Who approves an OCI waiver, and is it delegable?
→ HCA; non-delegable.
4. Are OCI exchanges during source selection "Discussions"?
→ No.

SECTION 4

Contractor Responsibility & Qualifications

Before award, the PCO must **affirmatively determine the contractor is responsible** (legacy FAR 9.1). Fail to check and document, and the PCO owns the consequences if the contractor can't perform.

KNOW COLD · RESPONSIBILITY CRITERIA

A contractor is responsible if it has: adequate financial resources (or the ability to obtain them); ability to comply with the required schedule; a satisfactory **performance** record; a satisfactory **integrity** record; the necessary organization, experience, accounting controls, and technical skills; required equipment and facilities; and is otherwise qualified and eligible. **For actions over SAT (\$350K), review FAPIIS and SAM Exclusions before award.**

KNOW COLD · CERTIFICATE OF COMPETENCY (COC)

If a **small business** is found non-responsible, **refer to the SBA before issuing the determination**. SBA may issue a **CoC the CO must honor**. The CO may **appeal a CoC for actions between \$100K and \$25M**; cannot appeal over \$25M but may request **SBA Headquarters review**.

AT THE BOARD

Responsibility is **present-tense and affirmative** — you must *find* the contractor responsible, not merely fail to find them non-responsible. Keep "responsibility" (can they perform?) separate from "responsiveness" (sealed-bid concept: did the bid conform to the solicitation?). And remember the small-business off-ramp: non-responsibility on a small business triggers the SBA CoC referral every time.

The shaky small business

Panel: *Your apparent awardee is a small business with thin financials and a questionable past-performance record on a \$4M action. You're leaning non-responsible. Next step?*

HOW TO ANSWER

"Issue: contractor responsibility, plus the small-business CoC process. **Rule:** I must affirmatively determine responsibility against the standard criteria and, because this is a small business, refer a proposed non-responsibility to the SBA *before* issuing it. **Apply:** over SAT, I check FAPIIS and SAM Exclusions, document the specific deficiencies, and refer to SBA. **Decide:** if SBA issues a CoC, I must honor it; at \$4M I retain the right to appeal a CoC (the \$100K–\$25M window)."

↳ *"SBA issues the CoC and you still have doubts — can you refuse award?"*

No — you must honor the CoC. Your remedy is the appeal (here, within the \$100K–\$25M band), not refusal.

↳ *"What if the action were \$40M?"*

Over \$25M you **cannot appeal** the CoC, but you may request SBA Headquarters review.

↳ *"Two records you must check over SAT before award?"*

FAPIIS and SAM Exclusions.

SELF-TEST

1. Is responsibility an affirmative finding or a default?
→ Affirmative — you must find them responsible.
2. Two systems to review over SAT before award?
→ FAPIIS and SAM Exclusions.
3. Small business found non-responsible — required step?
→ Refer to SBA for a CoC before issuing the determination.
4. CoC appeal window?
→ \$100K–\$25M may appeal; over \$25M request SBA HQ review.

Competition & Acquisition Planning

The default rule, the exceptions that survive a protest, and how the buy gets planned and sourced.

SECTION 5 · PART 6 CONCEPTS

CICA, Competition & Justifications (J&A)

When a requirement points to one contractor, or an emergency makes competition impractical, you must determine whether CICA applies, which exception fits, what documentation is required, and who approves. The wrong exception or missing documentation creates protest exposure and legal liability.

KNOW GOLD · THE DEFAULT RULE & WHERE CICA DOESN'T REACH

CICA requires full and open competition for all contracts over SAT (\$350K) — unless an exception applies. CICA does *not* govern: simplified acquisition procedures (Part 13); statutory authorities like Federal Supply Schedules (Part 8); in-scope modifications (Part 43); task/delivery orders under existing IDIQs (Part 16.5); and Other Transactions.

The seven exceptions to full and open competition (RFO 6.103; statute 10 U.S.C. §3204, formerly §2304(c))

#	Exception	Key points the board wants
-1	Only One Responsible Source	Unique capability; competition would duplicate cost and delays not recoverable. Emphasize market research. J&A required.
-2	Unusual & Compelling Urgency	Typically a JUON/UON. J&A must quantify the harm (including potential death/destruction). Solicit as many sources as practical. Duration limited to one year. J&A may follow award but synopsise within 30 days.
-3	Industrial Mobilization / Engineering / R&D Capability	Maintain or expand a facility for national emergency, or acquire expert services.
-4	International Agreement	A treaty prevents full and open competition. Requires an International Agreement Competitive Restrictions document.
-5	Authorized or Required by Statute	UNICOR and AbilityOne need no J&A. Sole-source 8(a) needs no J&A <i>up to</i> \$100M DoD / \$30M civilian; above those ceilings a written justification is required. J&A is also required when a statute "authorizes" but does not "require."
-6	National Security	Releasing the requirement would expose capability gaps. J&A required but exempt from synopsis (RFO 5.101(b)(1)(ii) — the national-security publicizing exemption; formerly FAR 5.202).
-7	Public Interest	Extremely rare; requires SecDef approval; not delegable.

Dollar value	Approval authority
Up to \$900K	Contracting Officer (CO certification = approval; agency may set higher)
\$900K to \$20M	Competition Advocate
\$20M to \$90M (DoD: to \$150M)	Head of the Procuring Activity or PEO
Over \$90M (DoD: over \$150M)	Senior Procurement Executive (SPE)

KNOW GOLD · J&A REQUIRED CONTENT & POSTING

Agency/activity; description of action; description of supplies/services; statutory authority; justification for the authority; efforts to obtain competition; anticipated fair & reasonable price; market research; other facts; sources that expressed interest in writing; actions to overcome barriers; CO certification; and technical/requirements certification. **Post to SAM.gov within 14 days of award (30 days for urgency).** National-security J&As are exempt from posting.

Full and open competition after exclusion of sources

A source can be *excluded* when doing so would ultimately increase competition, maintain a critical facility for national emergency, preserve R&D at an educational/non-profit institution, ensure continuous availability of a reliable source, satisfy projected high-demand needs, or address a critical medical/emergency requirement. A **D&F is required except for socioeconomic set-asides.**

Bridge contracts

A bridge covers the gap when a follow-on can't be awarded in time due to genuine unforeseen circumstances — protests, required strategy amendments, regulatory changes. **Lack of planning is never valid.** The CO must rigorously justify the need, state the bridge's purpose and duration, and outline steps to avoid future bridges (Decision Memorandum required; monthly status reports). Approval escalates with each successive bridge — first bridge at a lower level, with second and subsequent bridges climbing toward the Competition Advocate and SPE per local policy.

AT THE BOARD

Two reflexes win points: (1) **name the exception by number and tie it to the facts** — "this is a 6.103-1, only one responsible source, so my J&A lives and dies on market research"; and (2) **quote the J&A approval tier from memory.** For urgency (-2), always volunteer the *one-year cap* and "solicit as many as practical" — panels test whether you know urgency isn't a blank check. Distinguish a J&A (over-SAT sole source under Part 6) from a Part 13 sole-source SAP justification and from a Part 16.5 fair-opportunity exception.

"We need it now — and only BrandX makes it"

Panel: A combatant command issues a JUON. The requiring activity insists only one vendor can deliver in time, value ~\$12M. How do you proceed?

HOW TO ANSWER

"Issue: competition under CICA, with two candidate exceptions — urgency (-2) and possibly only-one-source (-1). **Rule:** over SAT, full and open unless an exception with a J&A. **Apply:** the JUON points to *unusual & compelling urgency*; my J&A must quantify the harm, I solicit as many sources as practical even under urgency, and I cap the action at one year. **Cite/approve:** at \$12M the J&A is approved by the Competition Advocate (\$900K–\$20M tier). **Decide:** proceed under -2, synopsise within 30 days if the J&A follows award, and document market research to defend the single-source claim."

↳ "Requiring activity wants a 3-year deal under the same J&A — OK?"

No — urgency (-2) is capped at **one year**. A longer term needs a different basis (e.g., -1 with robust market research) and the corresponding approval.

↳ "Now it's \$30M — who approves?"

The **Head of the Procuring Activity or PEO** (\$20M–\$90M tier).

↳ "Could you have avoided a J&A entirely?"

Only if a CICA-exempt path fit — e.g., an order under an existing IDIQ with a fair-opportunity exception, or an FSS buy. Otherwise the J&A stands.

NAVIGATE IT

Distractor to expect: "only one source" asserted without market research, or "it's urgent so skip competition." **Anchors:** RFO Part 6 / 10 U.S.C. §3204. **Leverage:** Competition Advocate, JA, engineering (market research/IGCE).

SELF-TEST

- Over what dollar value does CICA require full and open competition?
→ Over SAT (\$350K).
- Name the seven exceptions by short title.
→ One source; urgency; industrial mobilization/R&D; international agreement; authorized/required by statute; national security; public interest.
- J&A approval at \$15M? At \$200M (DoD)?
→ Competition Advocate; SPE (DoD over \$150M).
- Duration cap and synopsis rule for urgency (-2)?
→ One year; J&A may follow award but synopsise within 30 days.
- Posting timeline for a J&A?
→ SAM.gov within 14 days of award (30 for urgency); national security exempt.

Acquisition Planning & Strategy

Acquisition planning ties the requirement, market research, competition approach, funding, and schedule into one coherent strategy *before* you solicit. The board uses it to test whether you think like a strategist, not a package-runner.

KNOW COLD · WHAT A SOUND PLAN INTEGRATES

- **The requirement** — clearly defined need and the funding to support it (right color, right year — see Section 20).
- **Market research** (Section 8) — commercial? small-business capable? real competition?
- **Competition approach** — full and open, set-aside, or a justified exception (Section 5).
- **Contract type & risk allocation** (Section 13) and the buying method/vehicle.
- **Schedule, evaluation approach, and the milestones/reviews** the dollar value triggers (peer reviews, clearance — Section 28).

AT THE BOARD

Written acquisition-plan and acquisition-strategy *thresholds and formats* are set by DoD and DAF policy and vary — **know your activity's current AP/AS thresholds and peer-review triggers, and verify them** rather than quoting a number you're unsure of. The board reward here is showing that planning *drives* the downstream choices (competition, type, clauses), not the other way around. Tie acquisition planning to its outputs: the Acquisition Strategy/Plan, the IGCE, the source-selection plan, and the synopsis.

SELF-TEST

1. Name four elements a sound acquisition strategy must reconcile.
 - Requirement/funding, market research, competition approach, contract type/vehicle (and schedule/evaluation/reviews).
2. Where do you confirm your written-AP threshold and peer-review triggers?
 - Current DoD/DAF policy and your local supplement — verify, don't guess.

Required Sources

Before going to the open market, check mandatory sources in priority order. Skipping them without justification creates legal exposure. Document what was checked and why a mandatory source could not satisfy the requirement.

KNOW COLD · SUPPLIES — PRIORITY ORDER

1. Current Government inventory
2. Excess property from other agencies
3. Federal Prison Industries (UNICOR)
4. AbilityOne
5. Wholesale supply sources (incl. GSA)
6. Mandatory Federal Supply Schedules
7. Commercial sources

KNOW COLD · SERVICES — PRIORITY ORDER

AbilityOne first → Federal Supply Schedules → Federal Prison Industries → commercial.

FEDERAL SUPPLY SCHEDULES

GSA-managed; pre-negotiated commercial pricing. GSA Advantage (search/order); e-Buy (electronic RFQ). GSA sets prices fair & reasonable *at the schedule level*, but the **PCO must still independently verify fair & reasonable pricing for each order.**

AT THE BOARD

Note the priority order **flips for services** — AbilityOne leads. The most-missed point: an FSS price being "fair and reasonable at the schedule level" does *not* relieve you of an order-level price determination.

SELF-TEST

1. First two mandatory sources for supplies?
→ Government inventory; excess property from other agencies.
2. First mandatory source for services?
→ AbilityOne.
3. Does an FSS schedule price end your price analysis?
→ No — verify fair & reasonable at the order level.

SECTION 8 · PART 10 CONCEPTS

Market Research

Market research is how the PCO learns the market before key decisions: whether the item is commercial, whether small businesses can perform, whether meaningful competition exists, and how to define the requirement. It is the foundation justifying nearly every significant acquisition decision — and the backbone of a defensible sole-source J&A.

KNOW COLD · METHODS, TIMING & DOCUMENTATION

Methods: sources-sought notices, RFIs, internet searches, SME contacts, review of prior procurements in FPDS-NG, Industry Days, catalogs/publications, pre-solicitation conferences — match depth to value and complexity.

Timing/documentation: conduct at the start and revisit throughout. Research is **current if done within 18 months of award**. For contracts **over \$7.5M not covering standard items, market research is required**. **Notify SBA at least 30 days before releasing an RFQ.** Document findings in a market research report.

AT THE BOARD

Connect market research to *everything downstream*: it answers commerciality (Section 9), Rule of Two and set-aside decisions (Section 18), competition exceptions (Section 5), and price reasonableness (Section 11). The numbers to have ready: **18-month currency**, **over-\$6M required for non-standard items**, and the **30-day SBA notice**.

SELF-TEST

1. How long is market research considered current?
→ 18 months from award.
2. SBA notice lead time before an RFQ?
→ At least 30 days.
3. Dollar trigger making market research required for non-standard items?
→ Over \$7.5M (RFO 10.001).

SECTION 9 · PART 12 CONCEPTS

Commercial Products & Services

When a requirement might qualify as commercial, the PCO makes a formal determination, uses the streamlined procedures that apply, and knows what the Government gains and gives up. FASA established a **preference for commercial products and services** to promote competition, affordability, and efficiency — and the FY26 NDAA pushes a *commercial-first* posture even harder.

KNOW GOLD · COMMERCIAL PRODUCT/SERVICE DEFINITION

Sold, leased, or licensed to the general public — or evolved from such an item and available in time to meet the need. **Minor modifications not altering original form, fit, or function are acceptable.** For services: installation, maintenance, repair, or training *for commercial products* qualifies, as does any service sold competitively on catalog/market prices.

KNOW GOLD · WRITTEN DETERMINATION & WHAT PART 12 BUYS YOU

For DoD acquisitions over \$350K (= SAT), a written commercial product or service determination is required, approved one level above the PCO, ideally within 10 business days of compiling the data. The CID describes the item/service, the basis for meeting the definition (with comparison analysis), and carries CO signature and date. Relying on a prior determination? Also address how current market conditions affect that earlier finding.

Part 12 gives you: streamlined procedures; no certified cost or pricing data; simplified terms; a preference for FFP (or T&M under competition, or IDIQ with FFP); inspection upon delivery; only the data/software rights customary in the commercial marketplace; advance payments capped at **15%**; and **Termination for Cause** under clause 52.212-4 (FAR Part 49 does *not* apply). For actions **under \$9M** where only commercial offers are expected, use the streamlined commercial procedures; **below the micro-purchase threshold (\$15K), Part 12 does not apply.**

AT THE BOARD

Be ready for the FY26 NDAA overlay: **§1822 requires a commercial-first determination before any noncommercial DoD procurement**, and **§1823 expands Commercial Solutions Openings** (removing the "innovative" qualifier and allowing sole-source follow-on production). The classic trap: commercial-item terminations run through **52.212-4 (Cause)**, *not* Part 49 — don't reach for a T4D/T4C settlement framework on a commercial buy.

BOARD QUESTION · BRANCHING

"It's basically off-the-shelf"

Panel: *A program wants to buy a lightly-modified commercial radio for \$5M and skip certified cost data. Walk me through commerciality and what you'd document.*

HOW TO ANSWER

"Issue: commerciality determination and its pricing consequences. **Rule:** if it meets the commercial definition — including minor mods not changing form/fit/function — Part 12 applies, which means no certified cost or pricing data and a written CID over SAT. **Apply:** at \$5M (over SAT) I need a written CID approved one level above me, supported by market research and a price comparison; the minor-mod radio likely qualifies.

Cite/approve: CID one level up; pricing via price analysis (adequate price competition or catalog/market).

Decide: document the CID, default to FFP, and rely on price analysis rather than certified data."

↳ *"The 'minor mod' adds a classified waveform that changes function — still commercial?"*

Likely **no** — if the modification alters form, fit, or function it's outside the minor-mod allowance; reassess as noncommercial and trigger the §1822 commercial-first analysis on the record.

↳ *"You go noncommercial at \$5M — is certified cost or pricing data required?"*

Depends on date and exceptions: \$2.5M trigger through 30 Jun 2026, \$10M after — and check adequate price competition or other exceptions first (Section 11).

↳ *"How do you terminate a commercial contract?"*

Termination for **Cause** under 52.212-4 — Part 49 doesn't apply.

SELF-TEST

1. Dollar trigger for a written CID in DoD?
→ Over SAT (\$350K), approved one level above the PCO.
2. Commercial advance-payment cap?
→ 15% of contract price.
3. Which termination clause governs commercial products/services?
→ 52.212-4 Termination for Cause (not Part 49).
4. Two FY26 NDAA commercial-leaning provisions?
→ §1822 commercial-first determination; §1823 expanded CSOs.

Simplified Acquisition Procedures

For requirements under SAT (\$350K), SAP reduces paperwork, speeds the process, and creates small-business opportunities. Know the buying method, the dollar limits, and the minimum documentation.

KNOW GOLD · THREE BUYING METHODS & KEY RULES

- **Government Purchase Card (GPC)** — micro-purchases under \$15K; no competition documentation required.
- **Purchase Orders** — \$15K up to \$350K; a Government order is an offer the contractor accepts in writing or by performance.
- **Blanket Purchase Agreements (BPAs)** — repetitive purchases from established sources.

Key rules: actions between the micro-purchase threshold (\$15K) and SAT (\$350K) are **reserved for small business** unless two or more small-business sources can't be found. **Under \$25K, solicit at least three vendors** in the local area; **over \$25K, synopsise on SAM.gov**. Award can be on **price alone**. Sole source under SAT — document why only one source. Over SAT — a J&A is required.

AT THE BOARD

SAP lives *under* SAT and is CICA-exempt — that's the whole point. Keep three numbers straight: **\$15K** (micro / GPC), **\$25K** (the synopsis line), and **\$350K** (SAT / the J&A line). Remember the automatic small-business reservation in the \$15K–\$350K band ties directly into Rule of Two (Section 18).

SELF-TEST

1. Three SAP buying methods and their bands?
→ GPC (<\$15K), Purchase Orders (\$15K–\$350K), BPAs (repetitive).
2. What's reserved for small business automatically, and in what band?
→ Actions between \$15K and \$350K, unless two small sources can't be found.
3. Synopsis line within SAP?
→ Over \$25K, synopsise on SAM.gov.

Pricing, Negotiation & Contract Type

Getting to fair and reasonable, selecting the best value, and putting risk on the right party.

SECTION 11 · PART 15 CONCEPTS

Truthful (Certified) Cost or Pricing Data

Before negotiating, the PCO must know whether **certified cost or pricing data** is required, how to analyze the proposal, and how to document the negotiation. If the contractor's data turns out to be defective, the Government has remedies — but only if all five defective-pricing elements can be proven.

KNOW GOLD · THE CERTIFIED-DATA THRESHOLD — AND THE 1 JUL 2026 CHANGE

The requirement for **certified cost or pricing data** comes from the **truthful cost or pricing data** statute (10 U.S.C. §§3701–3708 / 41 U.S.C. §§3501–3509) — the law long known as the **Truth in Negotiations Act ("TINA")**; boards still say "TINA," but the current name is *truthful cost or pricing data*. Certified data is required when an action **exceeds the certified cost-or-pricing-data threshold** and no exception applies. **The threshold is \$2.5M for contracts entered into on or before 30 June 2026, and \$10M for contracts entered into after 30 June 2026** (FY26 NDAA §1804; implementing rule expected around that date). Until then, \$2.5M is the trigger.

Absolute-value rule: when modifying a contract with both added and deleted work, use the *absolute value of each*, not the net. Adding \$1M and deleting \$1M = **\$2M** for threshold purposes.

KNOW GOLD · EXCEPTIONS TO CERTIFIED COST OR PRICING DATA

- **Commercial products/services** under the commerciality definition (minor mods not changing form/fit/function).
- **Prices set by law or regulation.**
- **Adequate price competition** — any of three: (1) two or more responsible offerors compete independently and award is on a basis where price is a substantial factor; (2) a *reasonable expectation* of two or more competing (even if only one bid); or (3) price analysis shows the price is reasonable vs. current/recent prices for the same/similar items bought competitively.
- **Waiver of certified cost or pricing data** granted by the HCA.
- **Nontraditional contractors and small businesses** — exempt from certified cost or pricing data *and* FAR Part 31 cost principles (FY26 NDAA §1826).
- Pre-priced options, overrun proposals, interim billing price adjustments.

KNOW COLD · FOUR ANALYSIS TYPES

- **Price Analysis** — *always required*, regardless of certified data. Bottom-line price; preferred technique is comparison between offerors; in sole source, compare to similar items, prior buys, the IGCE, or published prices. Also checks unit prices, unbalanced pricing, and pass-through charges.
- **Cost Analysis** — evaluates each cost element; used when certified data is required or realism must be assessed. Direct (labor, materials, ODCs); indirect (overhead, G&A, fringe). Rates verified with DCMA via FPRAs/FPRRs/FPRPs.
- **Technical Analysis** — engineers assess labor hours, skill mix, BOMs, BOEs, subcontracts, GFP; gives the going-in objective.
- **Profit/Fee Analysis** — DFARS **Weighted Guidelines** when certified data is required; considers performance risk, contract-type risk, FCCOM. **Fee limits: 15% R&D, 10% most cost-type, 6% A&E.**

Proposal-analysis support thresholds

Support	Threshold
DCAA audits	Over \$10M fixed-price; over \$100M cost-type
DCMA field pricing assistance	Over \$2.5M fixed-price; over \$10M cost-type without deficiencies; over \$2.5M cost-type with deficiencies
Pricing review	\$25M sole source; \$100M competitive (waivable)

KNOW COLD · REASONABLENESS VS. REALISM & THE PNM

Reasonableness asks "is the proposed cost too *high*?" **Realism** asks "is it too *low* — can the contractor actually perform at that price?" Realism applies to **competitive cost-type** contracts to stop an unrealistically low proposal from winning and then overrunning.

The **Price Negotiation Memorandum (PNM)** tells the full story: purpose, acquisition details, who represented each side, contractor system status, any threshold exception, the PCO's reliance on data, objective vs. negotiated amounts, proposal summary, key facts, profit basis, and the statement that price is fair and reasonable. **Significant differences between the Government objective and the negotiated position must be identified and explained.**

⚠ DEFECTIVE PRICING — ALL FIVE ELEMENTS REQUIRED

Under the statute, if certified data was not accurate, current, or complete at agreement, the Government is entitled to a price adjustment *plus interest*. All five must be established: **(1)** the information fits the definition of cost or pricing data; **(2)** accurate/complete data existed before agreement; **(3)** it was not disclosed to the CO; **(4)** the Government relied on the defective data; **(5)** that reliance caused an increase in price. *Before* agreement: bring it to the contractor, use corrected data, update the PNM. *After* award: the Government is entitled to a price reduction (incl. profit); if the contractor won't settle, the PCO issues a unilateral modification and the contractor may appeal to the ASBCA or the Court of Federal Claims.

AT THE BOARD

This is a marquee topic — expect deep follow-ons. Win it by (1) **leading with the dated certified-data threshold** (" \$2.5M through 30 June 2026, \$10M after — and I'd check exceptions first"); (2) reciting "**price analysis is always required**"; and (3) rattling off the **five defective-pricing elements**. Don't confuse certified cost-or-pricing-*data* (the certified-data requirement) with *data other than certified* (used when an exception applies but you still need to establish a fair price). Clearance approval levels live in Section 28 / Appendix C.

Sole-source \$8M negotiation

Panel: *It's June 2026. You have a sole-source \$8M proposal, no competition. Is certified cost or pricing data required, and how do you analyze it?*

HOW TO ANSWER

"Issue: certified-data applicability and proposal analysis. **Rule:** certified data is required over the certified-data threshold absent an exception — today that threshold is \$2.5M for contracts entered on or before 30 June, \$10M after. **Apply:** if I award on or before 30 June at \$8M with no exception (no adequate price competition here), certified data is required; if after 30 June, \$8M is below \$10M, so it's *not* required by threshold — though I still need data sufficient to determine a fair price. **Cite/approve:** either way, *price analysis is always required*; with certified data I'd do cost analysis, Weighted Guidelines for profit, and request DCAA/DCMA support as the thresholds trigger. **Decide:** I'd confirm the entered-into date and the exception analysis before committing, and document it all in the PNM."

↳ *"Award lands 2 July — walk the consequence."*

After 30 June the threshold is \$10M; at \$8M certified data isn't required by the threshold. I'd still obtain adequate data, do price/cost analysis as needed, and document why the price is fair.

↳ *"Post-award you find the contractor sat on lower vendor quotes — remedy?"*

Defective pricing — if I can prove all five elements I'm owed a price reduction plus interest; unilateral mod if they won't settle, appealable to ASBCA/COFC.

↳ *"Which analysis is never optional?"*

Price analysis.

↳ *"Profit fee cap on a cost-plus R&D effort?"*

15% for R&D.

NAVIGATE IT

Distractor to expect: "it's commercial, no data," or "no competition but trust the price." **Anchor:** RFO Part 15.4 / 10 U.S.C. §§3701–3708. **Leverage:** DCAA/DCMA, pricing, FM.

SELF-TEST

1. Certified cost-or-pricing-data threshold before and after 30 Jun 2026?
→ \$2.5M on/before; \$10M after (§1804).
2. Mod adds \$1M, deletes \$1M — threshold value?
→ \$2M (absolute value of each).
3. Which analysis is always required?
→ Price analysis.
4. Five defective-pricing elements?
→ Fits data definition; accurate data existed; not disclosed; Government relied; reliance increased price.
5. Fee caps: R&D / most cost-type / A&E?
→ 15% / 10% / 6%.

Contract by Negotiation & Source Selection

Source selection picks the offeror whose proposal meets the Government's requirements and provides best value. Know how to structure the evaluation before solicitation, who plays what role, how to conduct exchanges lawfully, and how to document the decision so it survives a protest.

KNOW GOLD · THE BEST-VALUE CONTINUUM

LPTA works when requirements are well-defined, risk is low, and acceptable vs. unacceptable can be clearly specified. **Trade-off** works when requirements are less definitive, performance risk exists, and paying more for a better technical solution may be justified. The continuum **does not apply** to basic research, FAR 8.4 FSS, FAR 12 streamlined commercial, FAR 13 SAP, or FAR 16.5 fair-opportunity competitions.

KNOW GOLD · THE SOURCE-SELECTION TEAM

- **SSA** — the decision-maker; appoints SSEB/SSAC chairs; may award without discussions if the solicitation allows. **Under \$10M, the PCO serves as SSA.**
- **SSEB** — evaluates proposals *individually* against Section M criteria; does *not* compare proposals to each other.
- **PCO** — manages business aspects: competitive range, discussions, award, debriefs; protects B&P confidentiality. **DoD source-selection procedures apply to all competitive FAR 15 actions regardless of dollar value.**
- **SSAC** — required for acquisitions **over \$100M**, optional below; compares proposals and recommends award to the SSA.

KNOW GOLD · SECTIONS L & M, RATINGS, AND EXCHANGES

Section L tells offerors how to format/submit; **Section M** tells them how they'll be evaluated — **traceability between the two is critical**. Factors must be discriminators, minimal, and measurable. **Price/cost and past performance are the mandatory factors** (quality must be addressed through one or more non-cost factors); past performance gets a **Neutral** rating when recent/relevant history is lacking. Technical: Outstanding/Good/Acceptable/Marginal/Unacceptable. Risk: Low/Moderate/High. Cost/price is evaluated, not rated.

Exchanges: *Clarifications* (minor/clerical, no revisions) · *Communications* (before the competitive range, to make the range determination, no revisions) · *Discussions* (after the competitive range, with all in the range, must be **meaningful** — address every significant weakness and deficiency). The **competitive range** is a formal PCO determination approved by the SSA (CRDD required by DoD source-selection procedures). After discussions, request **Final Proposal Revisions** from all remaining offerors (FPR request requires written SSA concurrence).

KNOW COLD · THE DOCUMENTS & DEBRIEFINGS

SSP (org/factors/schedule/info-protection; SSA-approved) · **CRDD** (include/exclude reasons; CO + SSA) · **SSEB Initial/Final Reports** (contemporaneous) · **CAR** (SSAC's comparative analysis) · **SSDD** (SSA's independent, integrated, comparative decision — must explain trade-offs).

Debriefings: request within **3 days** of exclusion or award notice. *Pre-award:* may disclose the evaluation of the offeror's own significant elements and rationale for exclusion; not other offerors' identities/proposals/ratings. *Post-award:* must disclose significant weaknesses, evaluated cost and technical rating, past performance assessment, rankings, and award rationale.

FAR 15 vs. FAR 16.5 vs. FAR 8.4 — the comparison panels love

	FAR 15 (negotiation)	FAR 16.5 (IDIQ orders)	FAR 8.4 (FSS)
SSP	Required	Not required	Not required
Competitive range	Formal	None	None
FPRs	After discussions	None if interchanges used	N/A
Debriefings	All actions	Only over \$7.5M	Not required for most orders
Protest rights	Any action	Only over \$35M (DoD)	Any order

AT THE BOARD

Two facts panelists chase: **the SSEB evaluates against Section M and never compares proposals** (the SSA/SSAC compare), and **discussions must be meaningful** — you can't hold a significant weakness back. Keep the exchange ladder ordered (Clarifications → Communications → Discussions) and remember the dollar pegs: PCO-as-SSA under \$10M, SSAC over \$100M, debrief request within 3 days, FAR 16.5 protestability over \$35M (DoD).

The held-back weakness

Panel: *You're in discussions on a \$60M trade-off source selection. An evaluator wants to omit one offeror's significant weakness to "keep it fair." Your call?*

HOW TO ANSWER

"Issue: meaningful discussions. **Rule:** once I open discussions with offerors in the competitive range, they must be *meaningful* — I must address each offeror's significant weaknesses and deficiencies. **Apply:** omitting a significant weakness makes the discussions defective and hands the loser a protest.

Cite/approve: this is a \$60M competitive FAR 15 action, so DoD SS procedures apply; SSAC is in play (over \$100M would mandate it — here it's optional), SSA approves the competitive range and concurs in the FPR request. **Decide:** I raise the weakness in that offeror's discussions, document it, then request FPRs from all remaining offerors."

↳ *"Could you have avoided discussions entirely?"*

Yes — award without discussions if the solicitation reserved that right and only minor clarifications are needed; discouraged on large/complex programs like this.

↳ *"Who actually compares the proposals?"*

The SSA (aided by the SSAC where used). The SSEB only evaluates each against Section M.

↳ *"Loser asks for a debrief two weeks later — owed?"*

The request must come within 3 days of award notice; outside that window it's discretionary.

NAVIGATE IT

Distractor to expect: "make it LPTA, skip discussions, award Friday." **Anchors:** RFO Part 15.2 / DoD Source Selection Procedures. **Leverage:** SSA/SSAC, JA, pricing (realism).

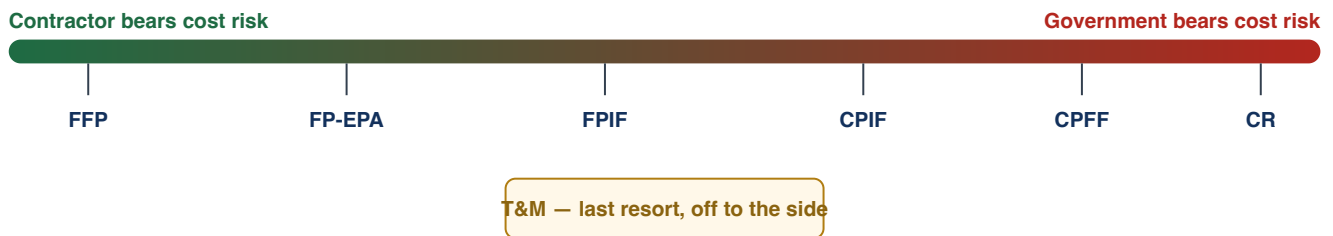
SELF-TEST

- Does the SSEB compare proposals?
→ No — it evaluates each individually against Section M.
- Dollar line where the PCO is the SSA? Where an SSAC is mandatory?
→ PCO-as-SSA under \$10M; SSAC required over \$100M.
- Order the three exchange types and which allow revisions.
→ Clarifications (no), Communications (no), Discussions (yes, then FPRs).
- FAR 16.5 debrief and protest dollar lines (DoD)?
→ Debrief over \$7.5M; GAO protest over \$35M.

SECTION 13 · PART 16 CONCEPTS

Contract Types & Risk

Contract type determines who bears cost risk and what incentive the contractor has to perform efficiently. The objective: **place risk on the party best able to manage it** while giving the contractor the greatest incentive for economical performance.



Risk shifts from contractor (left) to Government (right). T&M sits apart as a last resort requiring a D&F.

KNOW COLD · SELECTION FACTORS

How well-defined are requirements? How accurate can the cost estimate be? What's the technical risk? What competition exists? Does the contractor have an adequate accounting system? What's the acquisition history? The answers decide how much cost risk the Government retains vs. transfers.

KNOW COLD · FIXED-PRICE FAMILY

- **FFP** — well-defined requirements, low cost risk; contractor bears all cost risk. Best for commercial products and production.
- **FPIF** — adds a fee-adjustment formula. Has **target cost, target profit, ceiling price, and Point of Total Assumption (PTA)**. $PTA = (\text{Ceiling} - \text{Target Price}) \div \text{Government Share Ratio} + \text{Target Cost}$. After the PTA, **every added cost dollar comes out of the contractor's profit**.
- **FP-EPA** — price adjusts to economic indicators; used when market conditions make a firm price unreasonably risky over a long period.

KNOW COLD · COST-REIMBURSEMENT FAMILY & T&M

All cost-type contracts require a **D&F approved by the SCO** and an **adequate accounting system**. Costs must be **allowable, reasonable, and allocable**.

- **CR (Cost)** — allowable costs up to the estimated cost (Limitation of Cost clause), **no fee**; non-profit/educational, basic research.
- **CPFF** — estimated cost + fixed fee; fee doesn't move with cost unless scope changes (100% work = 100% fee). Fee caps: 15% R&D, 10% most, 6% A&E.
- **CPIF** — fee adjusts on cost performance via share ratio and min/max fee range.
- **T&M** — NTE ceiling, fully-burdened labor rates, cost-basis materials. Use *only* when scope/duration is genuinely un-estimatable. Requires a D&F (market research done; estimate impossible; no other type appropriate; minimizes T&M; steps to reduce future T&M). **D&F approval: COCO up to \$10M, SCO over \$10M, HCA for periods over 3 years.**

AT THE BOARD

Expect "walk me up the risk spectrum" and the **PTA question** — know the formula and what happens past the PTA (contractor eats every cost dollar; effectively FFP behavior). For cost-type, always volunteer the **SCO D&F + adequate accounting system** gate. Treat **T&M as a last resort** and recite its D&F findings — panels love to see you reluctant to use it.

Type selection on a risky dev effort

Panel: *A development program has immature requirements, high technical risk, and a contractor with a DCAA-approved accounting system. What type, and what gates?*

HOW TO ANSWER

"Issue: contract-type selection / risk allocation. **Rule:** put risk on who can manage it; immature requirements + high risk argue against FFP. **Apply:** I'd lean cost-type — CPIF if cost outcomes are incentivizable, CPFF if too uncertain to incentivize. **Cite/approve:** cost-type requires an SCO-approved D&F and an adequate accounting system — which they have. **Decide:** recommend CPIF with a share ratio, Weighted Guidelines profit, and a plan to migrate toward FPIF/FFP as requirements firm up."

↳ *"Program pushes FPIF anyway — your concern about the PTA?"*

Past the PTA the contractor bears 100% of additional cost, so on a high-risk dev effort they may price a high ceiling or refuse — FPIF works better once risk is better understood.

↳ *"They want T&M to start fast — gate?"*

A D&F proving the estimate is impossible and no other type fits; approval COCO ≤\$10M, SCO >\$10M, HCA for periods over 3 years. It's a last resort.

↳ *"Three tests every cost must pass?"*

Allowable, reasonable, allocable.

NAVIGATE IT

Distractor to expect: "make it FFP to be safe" on an immature effort, or incentivizing an undefined outcome. **Anchors:** RFO Part 16 / R-DFARS 216 / Weighted Guidelines. **Leverage:** Pricing, JA, engineering.

SELF-TEST

1. State the PTA formula and what happens past it.

→ $PTA = (\text{Ceiling} - \text{Target Price}) / \text{Gov't Share Ratio} + \text{Target Cost}$; past PTA the contractor bears every added cost dollar.

2. Two gates for any cost-type contract?

→ SCO-approved D&F + adequate accounting system.

3. T&M D&F approval ladder?

→ COCO ≤\$10M, SCO >\$10M, HCA for periods over 3 years.

4. Three cost tests?

→ Allowable, reasonable, allocable.

Ordering Vehicles & Flexibilities

IDIQ fair opportunity, options, interagency vehicles, and starting work before the deal is final.

SECTION 14 · PART 16.5 CONCEPTS

Fair Opportunity & IDIQ Ordering

When placing an order against a multiple-award IDIQ, every awardee must get a fair opportunity to be considered unless a recognized exception applies. The preference is always for **multiple-award IDIQs** — mini-competitions for each order keep competition alive throughout the contract's life.

KNOW COLD · IDIQ BASICS

Use when precise quantity can't be predetermined, recurring needs are anticipated, and ordering flexibility is needed. The **minimum guarantee must be obligated at contract award. Ordering period capped at 5 years.** Task orders for services; delivery orders for supplies. **MACs are generally required (multiple-award preference) for A&AS over ~\$13.5M with a PoP > 3 years** absent a single-award justification — verify the current threshold.

KNOW COLD · ORDER REQUIREMENTS BY DOLLAR VALUE

- **Under \$7.5M:** description of requirement, basis of selection, cost consideration (past performance may be included).
- **Over \$7.5M:** clear statement of requirements, reasonable response time, significant factors and relative importance, basis for award, notification and debriefing for unsuccessful offerors.
- **Over \$35M (DoD):** protestable to GAO (raised from \$25M by the FY2025 NDAA; civilian agencies remain at \$10M).

KNOW COLD · EXCEPTIONS TO FAIR OPPORTUNITY & THE D&A

Exceptions: unacceptable delay for an urgent need; only one awardee capable (unique/specialized); logical follow-on (use with caution, especially more than once); to satisfy the minimum guarantee; authorized/required by statute above SAT; small-business set-aside (no D&A required).

Determination & Approval (over SAT): structured like a J&A, using the *same approval tiers* — COCO up to \$900K; CA up to \$20M; PEO up to \$90M; SPE over \$90M. Post redacted D&A to SAM.gov within 14 days (30 for urgency). A **single-award IDIQ over \$100M** requires Head-of-Agency approval and Congressional notification within 30 days of award.

AT THE BOARD

Note the RFO twist: **Part 19 set-aside decisions for orders under multiple-award contracts are now discretionary and non-protestable** (Rule of Two still maintained at the contract level). The fair-opportunity D&A mirrors the J&A tiers — say that out loud. And know why we *prefer* multiple-award IDIQs: continued competition at the order level.

Skipping fair opportunity

Panel: *Your program wants to give a \$9M task order to one IDIQ awardee as a "logical follow-on" without competing it. Can you?*

HOW TO ANSWER

"Issue: fair opportunity under Part 16.5. **Rule:** every awardee gets fair opportunity unless an exception applies and, over SAT, I document a D&A. **Apply:** logical follow-on is a recognized exception, but it's caution-flagged — especially if used before — and at \$9M I owe a written D&A. **Cite/approve:** \$9M falls in the CA tier (\$900K–\$20M); post the redacted D&A to SAM.gov within 14 days. **Decide:** I'd proceed only with a solid logical-follow-on justification and the CA-approved D&A — otherwise I compete it among the awardees."

↳ *"It's the second logical follow-on to the same firm — concern?"*

Heightened scrutiny — repeated logical follow-ons look like competition avoidance; I'd reassess whether a fresh fair-opportunity competition is warranted.

↳ *"Order is \$40M (DoD) and a loser wants to protest — can they?"*

Yes — over \$35M (DoD) the order is GAO-protestable.

↳ *"Set-aside among the awardees — D&A needed?"*

No — small-business set-aside is an exception requiring no D&A.

SELF-TEST

1. IDIQ ordering-period cap and what must be obligated at award?

→ 5 years; the minimum guarantee.

2. Fair-opportunity D&A approval at \$15M?

→ Competition Advocate (same tiers as J&A).

3. GAO task-order protest threshold (DoD vs. civilian)?

→ Over \$35M DoD; over \$10M civilian.

4. MAC mandatory for A&AS at what size?

→ Over \$13.5M with PoP > 3 years.

SECTION 15 · PART 17 CONCEPTS

Options

Options give the Government the **unilateral right** to buy additional supplies, services, or an extended performance period within the terms of an existing contract. They must be priced at award, evaluated as part of source selection, and synopsized. Before exercising one, specific conditions must all be confirmed.

KNOW COLD · WHEN (AND WHEN NOT) TO USE OPTIONS; THE EXERCISE CHECKLIST

Use when the Government may need more of the same and continuity matters. **Don't** use when the contractor would bear undue risk holding the option, market prices are too volatile, there's no realistic chance of exercise, or the full requirement is already known and funded.

Before exercising, confirm all: price still fair and reasonable; funds available; option still serves the need; it's the best method for that need; it was synopsized or is exempt; contractor not excluded in SAM; past performance considered. Provide written notice by the date in the contract — **if that date has passed, the exercise must be bilateral.**

KNOW COLD · DURATION LIMITS (DFARS 217.204)

- **Service contracts:** base + all options ≤ **5 years**.
- **DoD task/delivery-order contracts:** ≤ **10 years** without Head-of-Agency determination.
- **Beyond 10 years:** requires SPE approval.
- **Exceptions:** contracts under other statutory authority, ANAS task-order contracts, definite-quantity contracts, and GSA schedule contracts.

AT THE BOARD

The most-tested trap: **options are unilateral only if you give notice on time**; miss the window and you've lost the unilateral right — it becomes a bilateral negotiation. Always confirm **fair & reasonable price** at exercise even though the option was priced at award (market may have moved, or the option may no longer be the best method).

The option you exercised late

Panel: *You want to exercise a one-year option on a services contract, but the notice date in the contract passed three days ago. Can you still exercise it unilaterally?*

HOW TO ANSWER

"Issue: option exercise and the unilateral right. **Rule:** an option is the Government's *unilateral* right only if I give written notice by the date in the contract; I also must confirm price still fair and reasonable, funds, that it still serves the need and is the best method, synopsis/exemption, not excluded in SAM, and past performance. **Apply:** the notice date passed, so I've *lost* the unilateral right — any exercise now must be **bilateral**, which the contractor can decline or use to renegotiate. **Cite/approve:** DFARS 217.204 duration limits still apply (services base + options $\leq$ 5 years). **Decide:** I'd pursue a bilateral modification, re-confirm fair and reasonable price and continued need/funds, document it, and fix my tickler so I never miss the window again."

↳ *"The contractor agrees but wants a higher price — allowed?"*

Bilateral means it's a negotiation; if I can't reach fair and reasonable, I may have no deal — and I still can't exceed the 5-year services duration cap.

↳ *"Base + four option years = six years on a services contract — problem?"*

Yes — services base + all options can't exceed 5 years (DFARS 217.204); I'd need a different vehicle or the proper higher-level authority.

↳ *"Name two reasons you'd decline to exercise even a priced option."*

Market moved so it's no longer fair and reasonable, or it's no longer the best method/there's no realistic need or funds.

SELF-TEST

1. What happens if you miss the option-exercise notice date?

→ You lose the unilateral right; exercise must be bilateral.

2. Service-contract base-plus-options duration cap?

→ 5 years.

3. Name three of the pre-exercise confirmations.

→ Price fair & reasonable, funds available, still best method/serves the need, synopsis/exempt, not excluded in SAM, past performance considered (any three).

SECTION 16 · PART 17 CONCEPTS

Interagency Acquisitions & the Economy Act

When the program wants to use another agency's contract, confirm the vehicle is appropriate, what documentation is required, and which authority governs.

KNOW COLD · TWO APPROACHES

- **Direct Acquisition** — the requesting agency places the order itself against the servicing agency's contract. Confirm it's the best approach, verify value/expertise, document the analysis. *No written interagency agreement required.*
- **Assisted Acquisition** — the servicing agency acquires on behalf of the requesting agency. **Written interagency agreement signed by both parties required**, defining roles and unique terms. If one is already on file, print it and place it in the file.

KNOW COLD · NON-DoD D&F & THE ECONOMY ACT

Best Procurement Approach D&F is required for any order against a **non-DoD** agency contract exceeding \$350K (analyzes alternatives, schedule/performance, the servicing agency's authority/history, and legal compliance).

The **Economy Act** applies when no more specific authority (FSS, GWACs) exists; uses a **MIPR**; **always requires a D&F** stating the interagency acquisition is in the Government's best interest and the supplies/services can't be obtained better from a private source. At least one of three must apply: the acquisition is under the servicing agency's existing contract; the servicing agency has the capability/expertise; or it's specifically authorized by law.

AT THE BOARD

Keep the hierarchy straight: **use a specific authority (FSS/GWAC) before the Economy Act** — the Economy Act is the fallback. Tie each path to its paperwork: assisted = signed interagency agreement; non-DoD over \$350K = Best Procurement Approach D&F; Economy Act = MIPR + D&F.

SELF-TEST

1. Direct vs. assisted — which needs a signed interagency agreement?
→ Assisted.
2. When does the Economy Act apply?
→ When no more specific authority (FSS/GWAC) exists; it's the fallback.
3. D&F for an order on a non-DoD contract over \$350K?
→ Best Procurement Approach D&F.

SECTION 17 · DFARS 217.74

Indefinitized Contract Actions (UCAs)

A UCA is used when a binding contract must start before price and terms can be fully negotiated. The PCO must confirm urgency is real, stay within obligation limits, keep definitization on track, and ensure the Government doesn't overpay for work already done.

KNOW COLD · WHEN JUSTIFIED & KEY LIMITATIONS

Justified only when: no time for negotiations; a binding agreement is needed so work can begin immediately; and waiting would cause genuine harm. **Lack of planning and administrative convenience are not valid.** The J&A typically uses exception -1 or -2 because the circumstances usually point to a specific contractor.

- Obligation limit **before** qualifying proposal: **50% of NTE**.
- Obligation limit **after** qualifying proposal: up to **75% of NTE**.
- Obligate only consistent with the contractor's spend plan.
- **Definitization deadline: 180 days** after the contractor submits a qualifying proposal (HCA may extend 90 days if in the Government's best interest).
- The 50% / 75% caps key off the qualifying proposal: don't obligate beyond 50% of NTE until the contractor submits a qualifying proposal, then up to 75%.

KNOW COLD · APPROVAL, REQUIRED CLAUSES & DEFINITIZATION

Approval: HCA, delegable to SCO; under \$50M, delegable to no lower than COCO. SCO approval is required *before* entering a UCA — including non-urgent requirements — or modifying UCA scope. **Required clauses:** Limitation of Government Liability and Contract Definitization. The contract must include CLINs with NTE pricing, PoP, firm technical requirements, T&Cs, a definitization schedule, and funding consistent with the spend plan. **The contractor can't be paid without a spend plan.**

Definitization: because work has already started, examine *actual costs*; cost risk is lower, so fee should reflect that in Weighted Guidelines. Complete the Pre-PNM, obtain Business Clearance, negotiate, finalize the PNM, obtain Contract Clearance, then modify the UCA into a definitized contract.

⚠ UCA ≠ UCO

An **Unpriced Change Order (UCO)** is distinct: it's a *unilateral change within the scope of an existing contract* where no equitable adjustment has yet been agreed. The PCO has authority to issue a UCO and definitize it through negotiation. And don't confuse either with a **UAC** (unauthorized commitment, Section 1) — three different things one transposition apart: **UAC** = someone *without authority* bound the Government; **UCA** = a new *binding contract* started before terms are set; **UCO** = an *in-scope, not-yet-priced* change to an existing contract.

AT THE BOARD

The three numbers to nail: **50% before / 75% after** qualifying proposal, and **180-day** definitization (90-day HCA extension). Volunteer that **SCO approval comes before entry** and that **lower cost risk at definitization should lower the fee** — that last point shows real fluency. UCAs need no clearance at award, but *do* require clearance at definitization (Section 28).

The 30%-then-stall UCA

Panel: *You issued a UCA on an urgent need with a \$20M NTE. The contractor has a qualifying proposal in, you've obligated 45%, and definitization is dragging. What governs?*

HOW TO ANSWER

"Issue: UCA obligation limits and the definitization clock. **Rule:** after a qualifying proposal I can obligate up to 75% of NTE, and I must definitize within 180 days of that proposal. **Apply:** 45% is within limits post-proposal, but I'm on the clock — I'd drive the schedule, examine actual costs since work started, and price fee for the reduced cost risk. **Cite/approve:** if I'll miss 180 days, only the HCA can extend it 90 days for best interest; clearance is required at definitization. **Decide:** push to definitize on schedule; request the HCA extension only with a real justification."

↳ *"Before the qualifying proposal you'd obligated how much, max?"*

50% of NTE.

↳ *"Who approved entering this UCA, and when?"*

SCO approval before entry (HCA delegable to SCO; under \$50M to no lower than COCO).

↳ *"Why should the fee be lower at definitization than at a fresh award?"*

Work has started and actual costs are visible, so cost/performance risk is lower — Weighted Guidelines should reflect that.

SELF-TEST

1. Obligation caps before/after a qualifying proposal?

→ 50% / 75% of NTE.

2. Definitization deadline and possible extension?

→ 180 days; HCA may extend 90 days.

3. Two mandatory UCA clauses?

→ Limitation of Government Liability; Contract Definitization.

4. UCA vs. UCO?

→ UCA starts a new binding contract before terms are set; UCO is a unilateral in-scope change to an existing contract, not yet priced.

Socioeconomic Programs & Rights

Small-business programs in a reform year, and who owns what when the contractor delivers data.

SECTION 18 · PART 19 CONCEPTS

Small Business Programs

Every acquisition above the micro-purchase threshold requires the PCO to consider small-business programs. The **NAICS code drives the size standard**; dollar value and the competitive landscape determine which program applies. A wrong NAICS code or a missed required set-aside exposes the acquisition to challenge.

KNOW GOLD · NAICS, RULE OF TWO & SET-ASIDE

The CO assigns the NAICS code describing the procurement's principal purpose; it determines whether businesses qualify as small. **NAICS appeals: within 10 calendar days of the solicitation** (SBA may appeal anytime); amend the solicitation when an appeal is filed. SB Specialists review all acquisitions **over \$15K**, documented on **DD Form 2579** (process for SB signature after ASP, J&A, fair-opportunity exception, or brand-name justification is approved; SB has 5 days).

Rule of Two: set aside when it's reasonable to expect **two or more** small-business concerns will submit competitive offers at a fair market price. Applies automatically between \$15K and \$350K, and over \$350K when conditions are met. If only one offer is received, award to that offeror.

The programs & current sole-source ceilings (Oct 2025 thresholds; manufacturing / other)

Program	Key points the board wants
19.104 — SB Set-Asides	Applies whenever Rule of Two is met above the micro-purchase threshold.
19.108 — 8(a)	SBA contracts with agencies and subcontracts to eligible firms. 9-year term; requirement stays in 8(a) once entered unless SBA releases it. Competitive 8(a) when ≥ 2 eligible firms expected and value > \$8.5M (mfg) / \$5.5M (other) . Sole source: DoD up to \$100M / civilian up to \$30M, no J&A . SBA must approve the final contract. <i>See currency note below.</i>
19.105 — HUBZone	Consider set-aside before sole source. Sole source NTE \$8.5M (mfg) / \$5.5M (other) . Not for A&E. 10% price evaluation preference added to non-HUBZone large-business offers in full-and-open buys.
19.106 — SDVOSB	Consider set-aside before sole source. Sole source NTE \$8.5M (mfg) / \$5M (other) .
19.107 — WOSB/EDWOSB	Sole source NTE \$8.5M (mfg) / \$5.5M (other) . CO may award if only one acceptable offer is received.

⚠ REFERENCE CURRENCY — THE 8(A) PROGRAM IS MOVING IN 2026

On **22 Jan 2026** SBA issued guidance eliminating **race-based presumptions** of social disadvantage and disavowing the old "social disadvantage narrative" framework — the program now uses **strictly race-neutral** standards (admissions dropped sharply, with many participants suspended). On **11 Jun 2026** SBA published a **proposed rule** to eliminate the rebuttable presumption entirely and require every applicant to show documented discrimination causing material harm. **Verify a firm's current 8(a) eligibility before relying on the program.**

KNOW GOLD · SUBCONTRACTING PLANS & COC

Subcontracting plan required at or above \$900K (\$2M for construction) when the prime is *not* a small business. Exceptions: small-business primes, personal-services contracts, contracts performed entirely outside the U.S., and in-scope modifications.

Certificate of Competency: small business found non-responsible → refer to SBA before issuing the determination; SBA may issue a CoC the CO must honor. CO may appeal a CoC for actions between **\$100K and \$25M**; over \$25M, request SBA HQ review (see Section 4).

AT THE BOARD

Two things signal currency: (1) **lead Rule of Two with "two or more at a fair market price"** and the \$15K–\$350K automatic band; and (2) **flag the 8(a) race-neutral shift** rather than describing the old presumption. Note the RFO change too: **set-aside decisions for orders under multiple-award contracts are now discretionary and non-protestable**, though Rule of Two is maintained at the contract level. Subcontracting-plan trigger: **\$900K / \$2M construction.**

Set-aside decision & the 8(a) question

Panel: Market research turns up three capable small businesses for a \$6M services buy, two of them 8(a). How do you proceed, and what's different about 8(a) this year?

HOW TO ANSWER

"Issue: set-aside decision and program selection. **Rule:** Rule of Two is met — two or more capable small businesses at fair prices — so I set it aside. **Apply:** I'd compare a small-business set-aside vs. a competitive 8(a) (at \$6M, over the \$5.5M 'other' competitive-8(a) line, with two eligible 8(a) firms it's viable).

Cite/approve: DD Form 2579 to the SB Specialist; SBA approves the 8(a) contract. **Decide:** I'd document the set-aside and, if 8(a), verify each firm's *current* eligibility — because as of 2026 the program is strictly race-neutral and many firms were suspended."

↳ "You go sole-source 8(a) to one firm at \$6M — J&A?"

No J&A for DoD sole-source 8(a) under \$100M (civilian under \$30M) — but SBA must accept/approve and you verify eligibility.

↳ "Only one of the three actually bids — award?"

Yes — under Rule of Two, if only one offer is received you may award to that offeror.

↳ "Prime isn't small and the award is \$1.2M — subcontracting plan?"

Yes — at/above \$900K with a non-small prime, a plan is required.

SELF-TEST

1. State the Rule of Two and its automatic band.

→ Reasonable to expect ≥2 small businesses at fair market prices; automatic \$15K–\$350K.

2. What changed about 8(a) eligibility in 2026?

→ Strictly race-neutral (Jan 2026 guidance); proposed rule (Jun 2026) to end the rebuttable presumption — verify current eligibility.

3. Sole-source 8(a) ceiling without a J&A (DoD)?

→ Up to \$100M (civilian \$30M).

4. Subcontracting-plan trigger?

→ \$900K (\$2M construction), non-small prime.

SECTION 19 · DFARS 227 CONCEPTS

Data Rights

When a contractor delivers technical data or software, the Government's rights depend on **who paid for development**. Understand those rights, ensure deliverables are properly marked, and know what to do when a contractor's assertions look unjustified.

KNOW COLD · THE FRAMEWORK

The Government **does not own** contractor data — it holds a **license** to use it for particular purposes. **Technical data** = recorded scientific/technical information (drawings, flow charts) — *not* computer software. **Computer software** = programs and code — *not* databases or documentation. **You cannot reverse-engineer software.** The Government's default is **unlimited rights unless the contractor affirmatively asserts restrictions** via the Data Assertion List (DFARS 252.227-7017). All restricted data must be asserted, included in Section J, and properly marked on delivery — the **burden of proof for any restriction rests with the contractor.**

Rights levels — keyed to who funded development

Funding	Technical data	Computer software
Entirely Government	Unlimited Rights — use, modify, reproduce, disclose to anyone for any purpose.	Unlimited Rights (mirrors technical data).
Mixed funding	Government Purpose Rights — internal use or release for Government purposes only; no commercial use; converts to unlimited after 5 years.	Government Purpose Rights (mirrors technical data).
Entirely private	Limited Rights — internal use, or emergency repair/overhaul, only.	Restricted Rights — use on one computer at a time.
SBIR	SBIR Rights — 20 years of protection; after the SBIR period, the Government has limited rights transitioning to unlimited.	

KNOW COLD · CHALLENGING ASSERTIONS

If the PCO believes an assertion isn't justified, send a **written challenge notice**. The contractor has **60 days to respond**. Challenges may be issued **up to 3 years after contract completion**. If unresolved, the PCO issues a final decision; the contractor may appeal to the COFC or a Contracts Appeals Board within **90 days**. **Until all appeals are resolved, adhere to the original assertion and do not release the data.**

AT THE BOARD

Lead with the principle: **the Government licenses, it doesn't own**, and rights track **who funded development**. The two facts panelists chase: **GPR converts to unlimited after 5 years**, and **the burden of proof is on the contractor**. Know the challenge clock (60-day response, 3-year window) and that you hold the data per the original assertion until appeals resolve.

The "limited rights" stamp on Government-funded data

Panel: *A contractor delivers drawings stamped "limited rights," but your file shows the development was fully Government-funded. What are your rights and your move?*

HOW TO ANSWER

"Issue: data-rights assertion vs. funding source. **Rule:** rights follow who paid — fully Government-funded technical data carries *unlimited rights*, and the contractor bears the burden to justify any restriction. **Apply:** the 'limited rights' marking is inconsistent with full Government funding, so I'd issue a written challenge notice. **Cite/approve:** contractor has 60 days to respond; I can challenge up to 3 years after completion; if unresolved I issue a final decision, appealable to COFC/Board within 90 days. **Decide:** challenge the marking, but until appeals resolve I treat the data per the original assertion and don't release it."

↳ *"It was mixed funding instead — rights, and for how long?"*

Government Purpose Rights — Government-purpose use only, converting to unlimited after 5 years.

↳ *"Can you reverse-engineer their software to get around a restriction?"*

No — reverse engineering of computer software is prohibited.

↳ *"Who has the burden to prove the restriction is valid?"*

The contractor.

SELF-TEST

1. Government-funded vs. mixed vs. private — technical-data rights?

→ Unlimited / Government Purpose (→unlimited after 5 yrs) / Limited.

2. Private-expense *software* rights level?

→ Restricted Rights (one computer at a time).

3. Challenge response time and challenge window?

→ 60 days to respond; up to 3 years after completion.

4. Who bears the burden of proof on a restriction?

→ The contractor.

Money & Disputes

Financing the contractor, the fiscal-law tripwires, and what happens when someone contests the award or the bill.

SECTION 20 • FISCAL LAW

Contract Finance & Fiscal Law (TPA)

Contract-financing questions arise when the contractor needs money before delivery. Fiscal-law questions arise whenever funds are obligated. Both require the PCO to confirm the right type and amount of funding, at the right time. This is a board favorite — expect the **Time, Purpose, Amount** test in some form.

KNOW COLD • THE TPA TEST

- **Time** — appropriations are only available during their period of availability. Current-year money for current-year needs. **Supplies:** bona fide need of the year they'll be used. **Services:** bona fide need of the years performed. **Severable services can cross fiscal years but cannot exceed 12 months;** non-severable services (a single outcome) can exceed 12 months and must be **fully funded**.
- **Purpose** — the Purpose Statute (Misappropriations Act) requires funds be spent only for the purpose appropriated.
- **Amount** — the **Anti-Deficiency Act** prohibits obligating above the appropriated amount or in advance of an appropriation.

KNOW COLD • FUND STATUS & FUNDING CLAUSES

Current = available for new obligations. **Expired** = no new work, but available **5 years** for upward adjustments (REAs, protests, terminations, claims). **Cancelled** = unavailable for any purpose.

- **Limitation of Cost** (fully-funded cost-type): contractor notifies the CO when costs are expected to reach **75%** of estimate within the next 60 days; not required to continue beyond the funded amount.
- **Limitation of Funds** (incrementally funded): same 75% notification against the total allotted amount.
- **LOGO** (incrementally funded fixed-price CLINs): notify within **90 days of reaching 85%** of the CLIN amount.

KNOW COLD • FINANCING ORDER OF PREFERENCE & KEY TYPES

Order of preference: private financing → customary contract financing → loan guarantees → unusual contract financing (SCO approval) → advance payments (least preferred).

- **Progress Payments** — DoD Class Deviation 2020-O0010 Rev 2 (active as of Mar 2026): **80% large business, 95% DoD small business** (standard FAR rates 80% / 85%); UCAs capped at 80%.
- **Performance-Based Payments** (preferred for FFP) — tied to objectively measured events; recoverable in default; not subject to Prompt Payment Act interest.
- **Commercial Advance Payments** — capped at **15%** of price before any performance.

CAS EXEMPTIONS (THE ONES PANELS TEST)

Sealed bids; actions under the **CAS applicability threshold (\$2.5M now, rising to \$35M per-contract after 30 Jun 2026 per FY26 NDAA §1806** — this is the CAS threshold; the certified-data threshold separately rises to \$10M under §1804); small businesses; foreign governments; prices set by law; FFP and T&M/LH for commercial products/services; actions under \$9M if the business unit has no contracts over \$9M; NATO PHM ship subcontracts; and FFP awards based on adequate price competition without cost or pricing data.

AT THE BOARD

The classic fiscal trap is **severable vs. non-severable services**: a severable services period can cross fiscal years but can't exceed **12 months**; a non-severable effort (one deliverable/outcome) must be **fully funded** up front and may span years. Tie any "can I use last year's money?" question to **bona fide need** and the Anti-Deficiency Act. Know the **5-year expired-fund** rule for adjustments.

"Use the expiring money"

Panel: *It's late September. A program wants to obligate expiring O&M on a 12-month base-services effort starting in October. Any problem?*

HOW TO ANSWER

"Issue: fiscal law — Time/bona-fide-need on a severable service. **Rule:** severable services are a bona fide need of the year performed; they may cross fiscal years but the period can't exceed 12 months. **Apply:** a 12-month severable services period starting in October is the next year's bona fide need, so funding it with this year's expiring O&M is a Time/Purpose problem unless a specific authority allows it. **Cite/approve:** Purpose Statute and Anti-Deficiency Act risk; I'd coordinate with FM/JA. **Decide:** fund it with the proper year's money (or use the recognized severable-services crossing authority correctly), not simply because the old money is expiring."

↳ *"What if it were a single study deliverable due in 14 months?"*

Non-severable — one outcome — so it can exceed 12 months and must be fully funded with the current appropriation.

↳ *"The funds expired last year — can they still pay a later REA?"*

Yes — expired funds remain available for 5 years for upward adjustments like REAs and claims.

↳ *"Obligating above the appropriation — which statute?"*

The Anti-Deficiency Act.

NAVIGATE IT

Distractor to expect: "use the expiring money," or "cross fiscal years freely." **Anchor:** Appropriations law — 31 U.S.C. §§1301/1341/1502 / GAO Red Book. **Leverage:** FM/comptroller, JA.

SELF-TEST

1. Severable vs. non-severable funding rule?

→ Severable: bona fide need of year performed, ≤12 months crossing FYs. Non-severable: fully funded, may span years.

2. Expired funds — available for what, and how long?

→ Upward adjustments (REAs/claims/terminations/protests) for 5 years.

3. Progress-payment rates (large / DoD small)?

→ 80% / 95% (DoD class deviation; standard FAR 80% / 85%).

4. The three TPA statutes by name?

→ Bona fide need (Time); Purpose Statute; Anti-Deficiency Act (Amount).

SECTION 21 · PART 33 CONCEPTS**Protests**

When a protest is filed, work may stop, timelines collapse, and the PCO suddenly has a legal proceeding to support. Knowing the venue, the automatic-stay rules, whether the stay can be overridden, and the PCO's specific duties determines how fast and effectively the Government responds.

KNOW COLD · WHAT CAN BE PROTESTED

Any solicitation, the cancellation of a solicitation, a contract award, or the termination/ cancellation of an award. For **IDIQ task orders**, GAO protest rights exist only when the order increases the scope, period, or maximum value of the contract — or **exceeds \$35M for DoD (\$10M civilian)**. **Timeliness (GAO)**: protests of solicitation improprieties must be filed *before* the proposal/quote due date; all other grounds within **10 days** of when the basis was known or should have been known.

The three venues

Venue	Character & clock	Stay
Agency	Fastest, least formal; recommended 35-day resolution. Can still protest elsewhere after. If impropriety is found, take corrective action before filing the Agency Report to avoid paying protest costs.	—
GAO	100-day decision deadline. Recommendations are advisory but followed in practice. Less expensive than COFC. (Air Force litigation handled by AFLOA/JAQ.)	CICA automatic stay applies.
COFC	Most formal, judicial; decisions binding and appealable. (DOJ represents the Air Force, AFLOA/JAQ assisting.)	No automatic stay — seek a preliminary injunction.

KNOW COLD · THE AUTOMATIC STAY (GAO)

Pre-award protest triggers an automatic delay of award upon receipt. **Post-award** protest triggers an automatic work stoppage if filed within **5 days of the debriefing or 10 days of award, whichever is later**. Override requires **written HCA authorization** citing urgent/compelling circumstances or best interest of the U.S.; for a post-award override at GAO, authorization must come within 30 days.

KNOW COLD · PCO RESPONSIBILITIES

Notify all concerned (including the SSA); coordinate with legal immediately; assemble the Agency Report (GAO) or Administrative Record (COFC); prepare the CO's Statement of Facts (required at GAO); support the Memorandum of Law (GAO) or briefs (COFC); **implement GAO recommendations within 60 days**; authorize payment of protest costs/attorney fees owed to the protester.

AT THE BOARD · THE 2026 REFORM OVERLAY

Know the new **"loser-pays" framework (FY26 NDAA §875)**: it is *incumbent-only* — an incumbent who protests the loss of a follow-on risks penalties only if GAO dismisses the protest as frivolous/lacking a reasonable basis; COs may **withhold up to 5%** of payments on an extension/bridge during the protest, with forfeiture on a frivolous protest. Implementing regulations were directed by **~May 2026** — confirm whether the implementing rule is now in effect. The number to nail: the **5-day-after-debrief / 10-day-after-award** stay trigger.

The stay clock

Panel: *You award; the debrief is held on day 3. A disappointed offeror files at GAO on day 6 after the debrief. Is performance stayed, and what do you do if the mission can't wait?*

HOW TO ANSWER

"Issue: CICA automatic stay timing and override. **Rule:** a post-award GAO protest stays performance if filed within 5 days of the debrief or 10 days of award, whichever is later. **Apply:** filed 6 days after the debrief — outside the 5-day debrief window, but I'd check the 10-day-from-award measure since it's 'whichever is later'; if within that, the stay applies. **Cite/approve:** to override, I need written HCA authorization on urgent/compelling or best-interest grounds, within 30 days for a post-award override. **Decide:** stop work if stayed, notify the SSA and JA, assemble the Agency Report and CO's Statement of Facts, and pursue an HCA override only with a documented urgency."

↳ *"GAO sustains — how long to implement?"*

Implement GAO's recommendations within 60 days.

↳ *"Same facts at COFC — automatic stay?"*

No — COFC has no automatic stay; the protester must seek a preliminary injunction.

↳ *"The protester is the incumbent who lost the follow-on — anything new?"*

The §875 loser-pays framework may apply: up to 5% withholding on a bridge/ extension, forfeited if GAO dismisses as frivolous — verify the implementing rule.

SELF-TEST

1. Post-award GAO stay trigger?

→ Filed within 5 days of debrief or 10 days of award, whichever is later.

2. Which venue has no automatic stay?

→ COFC (seek a preliminary injunction).

3. Who authorizes an override, and on what basis?

→ HCA, in writing, for urgent/compelling circumstances or U.S. best interest.

4. GAO decision deadline and implementation window?

→ 100-day decision; implement recommendations within 60 days.

SECTION 22 · DISPUTES

Requests for Equitable Adjustment & Claims

When the contractor says the Government changed the work and wants more money, the PCO must know whether it's an informal **REA** or a formal **claim**, how to evaluate and respond, and what authority and timeline apply.

	REA (informal)	Claim (Contract Disputes Act)
Nature	Informal request for cost recovery for a contract change.	Formal; a written demand under the CDA.
PCO decision	No formal decision required.	Final decision required.
Time limit	No statute of limitations.	Submit within 6 years of accrual.
Certification	Required when REA exceeds SAT (\$350K).	Required for claims over \$100K .
Interest	None.	Accrues from date of submission.
Legal fees	Allowable as proposal-prep costs.	Unallowable.

If an REA can't be resolved, it becomes a claim.

KNOW GOLD · THE TWO PROCESSES & THE 60-DAY RULE

REA: determine valid basis (consult legal) → technical evaluation → develop the Government's position on entitlement and quantum → negotiate → award a supplemental agreement with release of claims, or deny with documentation. Common triggers: directed work outside the Changes Clause, GFP not provided as scheduled, stop-work orders, Government-caused delays, differing site conditions.

Claim: verify certification (\$100K) → notify the program attorney → assess merit with the IPT (engage DCMA/DCAA) → settlement strategy (consider ADR) → issue a Final Determination with appeal rights. **For claims over \$100K, issue a decision (or state when you will) within 60 days;** no response = **deemed denial** and the appeal clock starts. Contractor may appeal to the Agency Board within **90 days** or the COFC within **12 months**. For claims/terminations over \$500K, coordinate for potential ADR (mediation, mini-trials, non-binding arbitration). Send decisions by certified mail.

AT THE BOARD

The cleanest discriminators to state: **REA = no interest, legal fees allowable, no formal decision; claim = interest from submission, legal fees unallowable, CDA final decision with appeal rights**. Nail the numbers: certification at **\$100K (claim)** vs. **SAT (REA)**; the **60-day** decision rule and **deemed denial**; appeal windows **90 days (Board) / 12 months (COFC)**.

REA that won't settle

Panel: *A contractor submits a \$400K REA for a Government-caused delay. You can't reach agreement and they convert it to a certified claim. Walk the timeline and your duties.*

HOW TO ANSWER

"Issue: REA-to-claim conversion under the CDA. **Rule:** an unresolved REA can become a claim; over \$100K it must be certified; I owe a final decision (or a date) within 60 days, and silence is a deemed denial. **Apply:** I verify certification, notify the program attorney, assess entitlement and quantum with the IPT, and — since it's over \$500K-adjacent territory — weigh ADR. **Cite/approve:** issue the Final Determination by certified mail with appeal rights; they may appeal to the Board within 90 days or COFC within 12 months. **Decide:** I'd push to settle on the merits, but if not, issue a timely, well-documented final decision so the deemed-denial clock never runs against the Government."

↳ *"Why did interest start mattering once it's a claim?"*

CDA interest accrues on a claim from the date of submission; an REA accrues none.

↳ *"They want their attorney fees — payable?"*

On the REA, legal fees were allowable as proposal-prep costs; on a CDA claim they're unallowable.

↳ *"You miss the 60 days — consequence?"*

Deemed denial; the contractor's appeal clock begins.

SELF-TEST

1. Three differences between an REA and a claim?

→ Interest (none vs. from submission); legal fees (allowable vs. not); formal decision (no vs. CDA final decision). Also certification trigger and time limits.

2. Claim certification threshold and CDA filing window?

→ Over \$100K; within 6 years of accrual.

3. Decision clock on a >\$100K claim, and the failure mode?

→ 60 days; failure = deemed denial.

4. Appeal windows?

→ Agency Board 90 days; COFC 12 months.

Specialized Vehicles & the Lifecycle

R&D instruments, construction and services, modifications and scope, property, and ending a contract.

SECTION 23 · PART 35 CONCEPTS

Research & Development Contracting

R&D contracting means choosing between a structured solicitation and a broader, ideas-based approach. The nature of the research, the specificity of the requirement, and the flexibility desired drive the choice. SBIR and assistance instruments add tools outside the FAR.

KNOW GOLD · BUDGET CATEGORIES & SOLICITATION METHODS

6.1 Basic Research · **6.2** Applied Research · **6.3** Advanced Technology Development · **6.4** Advanced Component Development & Prototypes. All use **3600 (RDT&E)** funding; the category drives which methods and competition rules apply.

- **RFP (Part 15)** — specific, detailed requirements; full SOW with Sections L & M; head-to-head competition.
- **Broad Agency Announcement (BAA)** — basic/applied research seeking a broad range of ideas; uses a Statement of Objectives; companies submit white papers or full proposals; Government experts evaluate each *independently* (not head-to-head) for technical merit; the Government may fund parts of proposals and award a contract *or* an assistance instrument.

BAA types: one-step (full proposals) · two-step (white papers then full) · open (1–5 year window) · closed (single deadline) · with calls (standing BAA with specific windows).

△ REFERENCE CURRENCY — SBIR/STTR WAS REAUTHORIZED (DON'T REPEAT THE LAPSE)

SBIR/STTR authority lapsed on 30 Sep 2025, but it **did not stay lapsed**: the **Small Business Innovation and Economic Security Act of 2026** reauthorized both programs, signed **13 Apr 2026**, extending them through **30 Sep 2031**. New solicitations have resumed. The reauthorization added a new Phase II "strategic breakthrough" funding vehicle (about a \$30M ceiling) and increased foreign-risk screening. **If your study notes say "expired / no new awards," they are out of date** — verify current SBA/agency guidance before any action.

KNOW GOLD · SBIR PROGRAM STRUCTURE

Agencies spending over **\$100M** on extramural R&D must direct **3.2%** to SBIR. For-profit small businesses (51% U.S.-owned, ≤500 employees).

- **Phase 1 (Feasibility):** firm performs **2/3** of the work; typically FFP, ~9-month PoP; SBA guideline ~\$150K (up to ~\$225K with waiver); unclassified.
- **Phase 2 (Prototype):** firm performs **1/2**; typically FFP, ~27-month PoP; SBA guideline ~\$1M (up to ~\$1.5M with waiver).
- **Phase 3 (Production):** funded outside SBIR; **no dollar cap; no J&A required if Phases 1 & 2 were competitive**; SBIR data rights apply.

KNOW COLD · ASSISTANCE INSTRUMENTS (NON-FAR)

- **Grants** — minimal Government involvement; competitive; paid-up patent license and march-in rights; for-profit and non-profit.
- **Cooperative Agreements** — substantial Government involvement; competition required; no cost share required.
- **Other Transaction Agreements (OTAs)** — typical 50/50 cost share; no patent rights required; authority under 10 U.S.C. §4022 (prototype) / §4021 (research), formerly §2371; excellent for nontraditional and commercial-tech firms.

AT THE BOARD

Show range here — panels like candidates who reach beyond standard FAR contracting. Be ready to contrast a **BAA (independent technical-merit evaluation, no head-to-head)** with a **Part 15 RFP**, and to explain when an **OTA** beats a FAR contract (nontraditional partners, prototype, cost-share). And *volunteer the SBIR reauthorization* — it's exactly the kind of recent change a board uses to see who's current.

Pick the R&D instrument

Panel: *You want a broad set of novel concepts from industry and academia for an early-stage research need, and the flexibility to fund the best pieces. What do you use, and how do you evaluate?*

HOW TO ANSWER

"Issue: R&D solicitation method. **Rule:** when I want a broad range of ideas rather than a single defined solution, a BAA fits — it uses a Statement of Objectives and independent technical-merit evaluation. **Apply:** I'd issue a BAA (likely two-step: white papers then full proposals), have Government experts evaluate each on the merits without comparing them head-to-head, and fund the strongest concepts — as contracts or assistance instruments. **Cite/approve:** 6.1/6.2 RDT&E funding; if nontraditional partners and cost-share make sense, an OTA. **Decide:** BAA for breadth; reserve an RFP for when the requirement is specific and I want head-to-head competition."

↳ *"A small business wants an SBIR path — still available in 2026?"*

Yes — SBIR/STTR was reauthorized 13 Apr 2026 through 2031; new solicitations resumed. Phase 3 needs no J&A if Phases 1–2 were competitive.

↳ *"Difference between a grant and a cooperative agreement?"*

Both are assistance; a grant has minimal Government involvement, a cooperative agreement has substantial involvement.

↳ *"Why an OTA over a FAR contract?"*

To attract nontraditional/commercial firms, share cost ~50/50, and avoid required patent-rights terms; 10 U.S.C. §4022 authority — prototype OTs, formerly §2371.

SELF-TEST

1. BAA vs. RFP evaluation difference?

→ BAA evaluates each proposal independently on technical merit (no head-to-head); RFP is head-to-head against L/M.

2. Current SBIR/STTR status?

→ Reauthorized 13 Apr 2026 through 2031 (new Phase II "strategic breakthrough" vehicle); not lapsed.

3. SBIR Phase 3 — cap and J&A?

→ No cap; no J&A if Phases 1–2 were competitive.

4. OTA typical cost share and authority?

→ ~50/50; 10 U.S.C. §4022 — prototype OTs (formerly §2371).

SECTION 24 · PARTS 36 & 37

Construction & Service Contracting

Construction and services each carry their own default methods, clauses, and determinations. The board tests the tripwires: sealed bidding, differing site conditions, bonds, and the personal-vs-nonpersonal services line.

KNOW COLD · CONSTRUCTION (PART 36)

Default method is **sealed bidding** (unless outside the U.S.); **A&E services acquired by negotiation** (qualifications-based). **Differing Site Conditions** (clause 52.236-2) require the contractor to give **written notice before** claiming an equitable adjustment; late notice can still be excused where the Government had actual or constructive knowledge and was not prejudiced — but never rely on that. **Liquidated Damages** are prescribed for construction when appropriate (RFO 11.403; the overhaul dropped the old fixed-dollar bright-line). **Bonds over \$150K**: Performance Bond at 100% of the original contract price; Payment Bond (labor and materials, not less than the Performance Bond); and a Bid Guarantee at solicitation. Disclosure of Magnitude required.

KNOW COLD · SERVICE CONTRACTING (PART 37) & PBA

A service contract engages a contractor's time and effort to perform an identifiable task. **Nonpersonal services** are proper under general contracting authority; **personal services are not allowed without specific statutory authorization** — the PCO makes and documents the personal-vs-nonpersonal determination with legal support.

Performance-Based Acquisition is the preferred method (except A&E, construction, utilities, services incidental to supply). Order of precedence: FFP performance-based → non-FFP performance-based → non-performance-based. Required elements: a **PWS**, measurable performance standards with an assessment method, and incentives where appropriate. A **SOO** lets offerors develop their own PWS (which doesn't become part of the contract). A **QASP** covers all work requiring surveillance; a COR is required for oversight. **Extension of services (option clause) cannot exceed 6 months**. A&AS over ~\$13.5M with a PoP > 3 years generally must use MACs (verify the current threshold).

AT THE BOARD

The two most-tested tripwires: **differing site conditions require written notice before the work** (or the REA is at serious risk — late notice is only excused with Government knowledge and no prejudice), and the **personal-services prohibition** (you're effectively creating an employer-employee relationship — that needs statutory authority). Know the bond/LD basis: **LDs prescribed for construction (RFO 11.403 — no fixed-dollar bright-line under the overhaul)**; **bonds (Miller Act) over \$150K**, and the **6-month services-extension cap**.

"Just embed them with the team"

Panel: *A program wants a contractor's engineers sitting in the program office, taking day-to-day direction from the Government PM, on a services contract. Concern?*

HOW TO ANSWER

"Issue: personal vs. nonpersonal services. **Rule:** nonpersonal services are fine under general authority, but *personal* services — where the Government directs the contractor's employees as if they were Government employees — are prohibited without specific statutory authorization; the PCO makes and documents that determination with legal support. **Apply:** Government PM giving day-to-day direction to embedded contractor staff looks like an employer-employee relationship — that's the personal-services red flag. **Cite/approve:** I'd restructure to a PWS with performance standards and a QASP, with direction flowing through the COR to the contractor's management, not to individuals. **Decide:** rewrite as a performance-based nonpersonal effort, or stop until I have statutory authority and JA concurrence."

↳ *"How do you keep a legitimate on-site support contract nonpersonal?"*

Direct outcomes via the PWS, not people; route tasking through the contractor's management/COR; avoid supervising individuals, setting their hours, or approving their leave.

↳ *"Different facts — excavation hits unexpected rock. What must the contractor do before claiming more money?"*

Differing site conditions (52.236-2): written notice **before** disturbing the condition — late notice only survives with Government knowledge and no prejudice.

↳ *"Construction contract is \$2M — what bonds and LDs apply?"*

Over \$150K: 100% Performance Bond + Payment Bond (≥ Performance Bond) + Bid Guarantee; LDs prescribed for construction at the CO's judgment (RFO 11.403).

SELF-TEST

1. Default construction method, and how A&E is acquired?
→ Sealed bidding; A&E by qualifications-based negotiation.
2. Differing site conditions — what's required before an REA?
→ Written notice before claiming the adjustment.
3. Personal vs. nonpersonal services — which needs statutory authority?
→ Personal services.
4. Services-extension (option clause) cap?
→ 6 months.

SECTION 25 · PART 43 CONCEPTS**Contract Modifications & Scope**

Every contract change requires a scope evaluation. Getting it wrong in the permissive direction means an improper sole-source award disguised as a modification; getting it wrong the other way stops work unnecessarily.

KNOW COLD · TYPES OF MODIFICATIONS

- **Unilateral** — PCO only; for administrative changes, in-scope change orders, exercising options, and termination notices. Contractor retains the right to submit an REA within 30 days of incurring costs.
- **Bilateral (Supplemental Agreement)** — both parties; preferred for any substantive change.
- **Directed Change** — formal change order under the Changes Clause; bilateral when possible; get a release of claims at settlement.
- **Constructive Change** — informal change by implication; the Government acts in a way that changes the contract without using the Changes Clause; contractor is entitled to an equitable adjustment and must assert within 30 days of incurring costs.
- **Cardinal Change** — so profound it exceeds the original scope; a potential breach; requires a new J&A or new competition. **The Changes Clause cannot authorize it.**

KNOW COLD · THE FOUR-ELEMENT SCOPE ASSESSMENT

Evaluate all four for any modification:

1. **Scope of Competition** — would original offerors have reasonably anticipated this change at award?
2. **Contract Type** — FFP has tighter scope; cost-type allows more flexibility.
3. **Period of Performance** — apply a reasonableness standard.
4. **Contract Cost/Price** — look at the *cumulative* impact of all modifications, not just the current one.

Scope creep: individually in-scope changes can collectively push a contract out of scope. When evaluating modification 100, compare the *cumulative* contract to the original — not the single mod against the original.

WHAT THE CHANGES CLAUSE COVERS

Supply contracts: drawings/designs/specs; shipment/packaging; place of delivery. Service contracts: description of services; time of performance; place of performance. T&M: same as supply plus GFE. **Do not use the Changes Clause for PoP changes (use mutual agreement) or GFP changes (use the GFP clause).**

AT THE BOARD

The marquee concept is the **cardinal change**: when a "mod" is really new work the Changes Clause can't reach, so it needs competition or a J&A. When you assess scope, *say all four elements* and stress the **cumulative** view — that's how an auditor or protester will look at it. Constructive vs. directed change is a common follow-on: constructive is by implication; directed is a formal order.

Mod or new competition?

Panel: *A program wants to add a major new subsystem and two years of effort to an existing FFP production contract via modification. Concern?*

HOW TO ANSWER

"Issue: scope — is this within the contract or a cardinal change? **Rule:** I apply the four-element scope test, and a change so profound it exceeds the original scope is a cardinal change the Changes Clause can't authorize. **Apply:** a major new subsystem plus two years on an *FFP* contract — tight scope — would not have been reasonably anticipated by original offerors, and the cumulative cost/PoP impact is large; that points to cardinal change. **Cite/approve:** if cardinal, I need new competition or a J&A, not a mod. **Decide:** I'd decline the modification route and compete it (or justify sole source), documenting the four-element analysis."

↳ *"It's the tenth small mod and each looked in-scope — does that matter?"*

Yes — scope creep. I compare the cumulative contract to the original, so a series of in-scope mods can collectively become out-of-scope.

↳ *"You verbally tell them to proceed and they incur cost — what did you just create?"*

A constructive change — they're entitled to an equitable adjustment and must assert within 30 days of incurring cost.

↳ *"Right way to change the period of performance?"*

Mutual agreement (bilateral) — not the Changes Clause.

SELF-TEST

1. Which change type can the Changes Clause never authorize?

→ Cardinal change (needs new competition / J&A).

2. The four scope-assessment elements?

→ Scope of competition, contract type, period of performance, cost/price (cumulative).

3. Constructive vs. directed change?

→ Constructive = by implication; directed = formal order under the Changes Clause.

SECTION 26 · PART 45 CONCEPTS

Government Property

When the program wants to provide Government equipment to a contractor, confirm the decision is justified, the right person made it, it's documented, and all required clauses are included. The **default is that contractors furnish their own property.**

KNOW COLD · THE FOUR-PART JUSTIFICATION

The **requiring activity (the program manager — not the contractor)** must clearly demonstrate **all four**: in the Government's best interest; the overall benefit significantly outweighs increased administrative costs; it does not substantially increase Government risk; and the requirement cannot otherwise be met. The PM documents the basis in an **MFR to the PCO**. *Exception*: no documentation for repair/modification/overhaul contracts.

KNOW COLD · REQUIRED CLAUSES (ALL SIX DFARS APPLY WHEN 52.245-1 IS IN)

- **FAR 52.245-1** (Government Property) — foundational management clause.
- **FAR 52.245-9** (Use and Charges) — use, including potential rental fee.
- **DFARS 252.211-7007** — reporting to the DoD IUID Registry.
- **DFARS 252.245-7001 / -7002 / -7003 / -7004** — tagging/marketing; reporting loss; property-management-system administration; reporting/reutilization/disposal.

AT THE BOARD

Lead with the **default**: contractors furnish their own property, so GFP is the exception that must be justified. Stress that **all four** justification elements must be met and that it's the **PM/requiring activity** who owns the MFR, not the contractor. If asked about clauses, note the **six DFARS property clauses ride along with 52.245-1**.

SELF-TEST

1. What's the default on contractor property?
→ Contractors furnish their own; GFP is the justified exception.
2. How many justification elements must be met, and who documents it?
→ All four; the PM/requiring activity via MFR to the PCO.
3. When is the justification documentation excused?
→ Repair/modification/overhaul contracts.

SECTION 27 · PART 49 CONCEPTS

Terminations

Termination is either a management decision by the Government (**T4C**) or a consequence of contractor failure (**T4D**). Each has distinct procedures, notice requirements, and consequences. **Part 49 does not apply to commercial-item contracts** — use FAR 12.403 and clause 52.212-4 for those.

KNOW COLD · TERMINATION FOR CONVENIENCE (T4C)

The Government's **unilateral right** to terminate when it's in the Government's best interest. The contractor is entitled to a **negotiated settlement covering costs incurred plus reasonable profit on work completed** (no anticipatory profit). The T4C notice states: the contract terminated; effective date; extent of termination; special instructions; and steps to minimize impact on personnel. After receipt, the contractor stops work, mitigates subcontractor impact, and submits a termination settlement proposal.

KNOW COLD · TERMINATION FOR DEFAULT (T4D) — REMEDY OF LAST RESORT

Used for actual or anticipated failure to perform. **Before defaulting, issue a Cure Notice** stating the Government's intent to terminate, the reasons, and giving the contractor **10 days to cure**. A Cure Notice is *not* required for failure to timely deliver goods, defaults under a clause not requiring notice, or construction under 52.249-10 — but **when in doubt, send one**. Then issue a **Show Cause** notice demanding the contractor explain why it shouldn't be defaulted. The T4D notice (delivered in hard copy) includes: contract number/date; the act/omission; that the right to proceed is terminated; liability for excess procurement costs; that the failure is not excusable; reservation of rights; and the CO's final decision.

Consequences: the Government is not liable for unaccepted work, can reclaim payments, may appropriate contractor items, holds the contractor liable for excess procurement costs, and may pursue debarment. For the Government: lost time, litigation exposure, and an admission that earlier safeguards failed.

AT THE BOARD

Two things win it: (1) **T4D is a remedy of last resort** — show you'd exhaust cure/ show-cause and consider a no-cost cancellation or T4C first; and (2) **commercial products/services terminate under 52.212-4 (Cause), not Part 49**. On T4C, remember **reasonable profit on work done, never anticipatory profit**. A T4D is appealable, so your file and final decision must be airtight.

The failing contractor

Panel: *A contractor is badly behind and quality is slipping on a non-commercial supply contract. The program wants you to "default them today." Your approach?*

HOW TO ANSWER

"Issue: termination — and which kind. **Rule:** T4D is a remedy of last resort with due-process steps; before defaulting I generally issue a Cure Notice (10 days) then a Show Cause. **Apply:** I'd document the failures, issue a Cure Notice giving 10 days, evaluate the response, and consider whether the failure is excusable; only then a Show Cause and, if warranted, a T4D with the required contents and my final decision.

Cite/approve: Part 49 (this is non-commercial); coordinate closely with JA because a T4D is appealable.

Decide: if default isn't clearly supportable, I'd weigh a T4C or no-cost settlement to protect the Government from a reversed default and repurchase fight."

↳ *"When is a Cure Notice not required?"*

Failure to timely deliver goods, defaults under a clause not requiring notice, or construction under 52.249-10 — but when in doubt, send one.

↳ *"You T4C instead — what does the contractor get?"*

A negotiated settlement: costs incurred plus reasonable profit on work done — no anticipatory profit.

↳ *"Same facts on a commercial contract — what governs?"*

Not Part 49 — Termination for Cause under 52.212-4 (FAR 12.403).

SELF-TEST

1. T4C contractor recovery — what's included and excluded?

→ Costs incurred + reasonable profit on work done; no anticipatory profit.

2. Cure Notice cure period?

→ 10 days.

3. Which clause/part terminates a commercial contract?

→ 52.212-4 Termination for Cause (FAR 12.403) — not Part 49.

4. Order of T4D due-process steps?

→ Cure Notice → Show Cause → T4D with final decision.

Approval & Clearance

The independent review that confirms the deal is sound — and who signs at each dollar band.

SECTION 28 · CLEARANCE

Clearance & Independent Review

Clearance is the independent review and approval step that confirms a contract implements the approved acquisition strategy, produces fair and reasonable results, and complies with applicable law. The core principle: **the person who selected the source cannot also approve clearance**. It's triggered at specific dollar thresholds and key decision points.

⚠️ GOVERNING POLICY — VERIFY THE CURRENT SOURCE

Clearance procedures are set by **DAF-level supplemental policy** (historically a DAFFARS subpart) and are being reissued under the Revolutionary FAR Overhaul. **This guide does not cite the legacy DAFFARS as live authority.** Confirm the current DAF clearance policy and your activity's clearance matrix in the authoritative DAF resource — the **DAF Contracting Compass** — which is **CAC-restricted (no public access)**. **Know your own activity's current clearance thresholds cold**; the bands below reflect a common structure but vary by organization and are changing.

KNOW COLD · BUSINESS VS. CONTRACT CLEARANCE

- **Business Clearance** — approval to release a competitive solicitation, or to begin negotiations in a sole source.
- **Contract Clearance (competitive, no discussions)** — the SSA's award decision.
- **Contract Clearance (competitive, with discussions)** — the SSA's final revisions and selection decision.
- **Contract Clearance (sole source)** — the contract or modification award.

UCAs do not require clearance at award — clearance is required at definitization (Section 17).

A representative clearance-approval ladder (verify against current DAF policy & your local matrix)

Dollar value	Approval authority (role)
Under \$10M	PCO
\$10M to \$75M	Three levels below SCO (e.g., Branch Chief)
\$75M to \$200M	Two levels below SCO (e.g., Division Chief)
\$200M to \$500M	One level below SCO (the senior reviewing/OSF official)
\$500M to \$1B	SCO
Over \$1B	SAF/AQC

KNOW COLD · EXCEPTIONS FROM CLEARANCE

Actions leading to a UCA; in-scope actions strictly consistent with existing terms; incremental funding actions; and modifications for wage-rate or labor-regulation adjustments.

AT THE BOARD

Lead with the **independence principle** — the source selector can't approve their own clearance — and then the **Business vs. Contract** distinction. When you quote the ladder, *frame it as your activity's matrix subject to current DAF policy*; that shows you know thresholds vary and are moving under the overhaul. Tie clearance back to UCAs (none at award, required at definitization) and to the cost/pricing PNM (Section 11) that supports it.

Who signs, and why not you?

Panel: *You're the SSA on a \$120M competitive award with discussions. Who approves clearance, and at what points?*

HOW TO ANSWER

"Issue: clearance — independence and level. **Rule:** the source selector can't approve their own clearance, and the approval level rises with dollar value per current DAF policy and my local matrix. **Apply:** I'd obtain *Business Clearance* before negotiations/competitive range, and *Contract Clearance* for the final revisions and selection decision; because I'm the SSA, the clearance approver must be someone other than me.

Cite/approve: at \$120M a common structure puts approval two levels below the SCO — but I'd confirm the current threshold in DAF policy. **Decide:** route to the independent clearance authority with the PNM/SSDD supporting fair-and-reasonable and strategy compliance."

↳ *"It's \$600M instead — who clears?"*

In the common structure, the SCO (\$500M–\$1B); over \$1B it's SAF/AQC. Verify against current policy.

↳ *"You issue a UCA on an urgent piece — clearance at award?"*

No — UCAs need no clearance at award; clearance is required at definitization.

↳ *"Name two actions exempt from clearance."*

In-scope actions strictly consistent with existing terms, and incremental funding actions (also UCA-leading actions and wage/labor-rate mods).

SELF-TEST

1. Core independence principle of clearance?

→ The source selector cannot approve their own clearance.

2. Business vs. Contract Clearance?

→ Business = release a competitive solicitation / start sole-source negotiations; Contract = the award/selection decision.

3. Clearance for a UCA?

→ None at award; required at definitization.

4. Where do you confirm your actual thresholds?

→ Current DAF policy and your local clearance matrix (Compass is CAC-restricted).

Capstone — Mock-Board Scenarios

Three integrated "How Goes It" drills that span topics, the way a real board does. Work them out loud, end to end.

HOW TO USE PART X

Real boards rarely stay in one lane. They hand you a messy fact pattern and chase it across authority, competition, fiscal law, and disputes in one breath. For each scenario below, run the **I-R-A-C-D** method (Part I) on the opening prompt, then take the branching follow-ons cold. The *"How a strong candidate works it"* walk is one good path — not the only one.

CAPSTONE SCENARIO 1 · AUTHORITY · CICA · BRIDGES · FISCAL LAW

The midnight "keep working" call

A combatant command has an urgent need. Your follow-on award is stuck behind a protest, the incumbent's period ends in 9 days, and a COR has already told the incumbent to "keep working — we'll figure out the paperwork." It's late September; the program offers expiring O&M to cover it. Walk me through it.

PAUSE — RUN I-R-A-C-D BEFORE READING ON

- 1 **Spot the stacked issues.** "There are three: an *unauthorized commitment* (the COR), a *competition gap* needing a bridge or an urgency exception, and a *fiscal-law* question on the expiring money. I'll take them in order."
- 2 **Handle the UAC first.** The COR can't direct work — apparent authority isn't binding. Open a ratification investigation within 30 days, get the MFR and proof of benefit, confirm fair price and fund availability; under SAT the COCO ratifies, over SAT the HCA (delegable to SCO).
- 3 **Close the competition gap correctly.** Either a *bridge* (genuine unforeseen circumstance — a protest qualifies; lack of planning never does; Decision Memorandum, monthly reports, escalating approval) or an *urgency J&A* (6.103-2) capped at one year, soliciting as many sources as practical, synopsized within 30 days if it follows award.
- 4 **Get the money right.** A 12-month severable services bridge starting in October is next year's bona fide need — funding it with this year's expiring O&M is a Time/Purpose problem and an ADA risk. Coordinate with FM/JA and use the proper year's funds.
- 5 **Decide and protect the file.** Ratify the UAC if elements hold; stand up a bridge or urgency action with the right approval; fund it lawfully; document everything. Loop in JA early throughout.

↳ *"The protest is at GAO and you're stayed — can you still bridge?"*

Yes — a bridge addresses the gap the stay creates; that's a textbook unforeseen circumstance. Document the protest as the driver and the steps to avoid future bridges.

↳ *"Funds were available when the COR spoke but expire in 9 days — ratifiable?"*

The element is "available at the time of the commitment **and remain available**"; if they lapse before ratification, that element fails — pivot to a quantum-meruit path with JA/FM.

↳ *"Program says 'just make the bridge 18 months.'"*

An urgency basis caps at one year; an 18-month bridge needs a different, well-justified basis and the matching approval — and a severable services period still can't exceed 12 months.

TAKEAWAY When issues stack, **name them, sequence them, and resolve each on its own framework.**

The panel is watching whether you keep the UAC, the competition gap, and the fiscal-law question from blurring together.

CAPSTONE SCENARIO 2 · PIA · OCI · SOURCE SELECTION · PROTESTS

The leaky \$150M source selection

You're running a \$150M competitive trade-off. Mid-evaluation, you learn (a) a support contractor on your team helped shape the SOW and now appears on an offeror's team, and (b) an evaluator emailed one offeror's cost volume to a competitor by mistake. After award, the loser files at GAO within 5 days of its debrief. Take me through it.

PAUSE — WHAT ARE THE FRAMEWORKS, AND IN WHAT ORDER?

- 1 **Triage two integrity issues.** "I have an *OCI* — likely biased ground rules, the hardest to mitigate — and a *PIA* disclosure. Both can taint the procurement, so I address each before proceeding."
- 2 **Work the *OCI*.** Identify the type; the SOW-author-now-bidding pattern is biased ground rules. Avoid/Neutralize/Mitigate — but for biased ground rules, exclusion is the likely outcome; recommend a course of action to the HCA before relying on any mitigation. The PCO holds final say on the plan.
- 3 **Work the *PIA* on the clock.** 20 business days: notify JA first, gather facts, direct deletion with a signed affidavit, notify affected parties, get the sender's MFR, and write an impact determination. No impact → CA/Clearance Approval Authority concur; impact → HCA may cancel, disqualify, or void.
- 4 **Keep the source selection clean.** The SSEB evaluates against Section M without comparing; if I open discussions they must be meaningful (every significant weakness); SSAC is optional at \$150M (mandatory over \$100M is met — use it); SSA makes the integrated, documented SSDD.
- 5 **Run the protest.** Filed within 5 days of debrief → CICA automatic stay; stop work, notify the SSA, assemble the Agency Report and CO's Statement of Facts, support the Memorandum of Law; implement any GAO recommendation within 60 days. Override only by written HCA authorization on urgency.

↳ *"The *OCI* contractor offers to firewall the team — enough?"*

For biased ground rules, a firewall rarely cures it because the advantage is baked into the requirement; exclusion is likely, or an HCA non-delegable waiver if benefit truly outweighs.

↳ *"Does the cost-volume leak automatically kill the buy?"*

No — it drives my *impact determination*. No competitive advantage gained → CA/JA/policy concur and proceed; impact → HCA decides (cancel/disqualify/void), with debarment/criminal exposure possible.

↳ "The protest grounds attack your discussions as not meaningful — exposure?"

High, if I held back a significant weakness. Meaningful discussions require addressing every significant weakness/deficiency with each offeror in the range.

TAKEAWAY Integrity issues come **before** the evaluation mechanics — resolve OCI and PIA first, each on its own clock and approval chain, then show a clean, well-documented selection that can survive the protest you should expect at this dollar value.

CAPSTONE SCENARIO 3 · CONTRACT TYPE · COST/PRICING · UCA · DATA RIGHTS · SCOPE

The fast-start development program

A high-priority development effort must start in two weeks, requirements are immature, and the only realistic source is a single contractor with a DCAA-approved accounting system. NTE is \$40M. Later, the program wants to add a major subsystem by modification, and the contractor stamps its delivered drawings "limited rights." It's June 2026. Work it.

PAUSE — SEQUENCE THE LIFECYCLE DECISIONS

- 1 **Start lawfully under time pressure.** "Real urgency plus immature requirements points to a UCA. SCO approval before entry; obligate ≤50% of NTE before a qualifying proposal, ≤75% after; definitize within 180 days (HCA +90). Required clauses: Limitation of Government Liability and Contract Definitization; pay only against a spend plan."
- 2 **Pick the type for the risk.** Immature requirements + high risk argue cost-type — CPIF if cost is incentivizable, else CPFF — requiring an SCO-approved D&F and the (existing) adequate accounting system; migrate toward FPIF/FFP as requirements firm.
- 3 **Handle certified cost or pricing data at definitization, by date.** Through 30 June the threshold is \$2.5M; at \$40M certified cost or pricing data is required absent an exception — examine actual costs since work started and price fee for the now-lower risk in Weighted Guidelines. (After 30 June the threshold is \$10M, but \$40M still exceeds it.)
- 4 **Test the later modification for scope.** A major new subsystem on an immature-but-defined effort — run the four-element scope test and the cumulative view. If it exceeds original scope, it's a *cardinal change* the Changes Clause can't authorize → new competition or a J&A.
- 5 **Resolve the data-rights assertion.** Rights follow funding. If development was Government-funded, "limited rights" is inconsistent — issue a written challenge (contractor responds in 60 days; challenge window 3 years post-completion). Hold the data per the original assertion until appeals resolve.

↳ "You've obligated 60% of NTE but have no qualifying proposal — problem?"

Yes — before a qualifying proposal you're capped at 50% of NTE. I'd stop at the limit and press the contractor for the qualifying proposal to lift the cap to 75%.

↳ "At definitization the fee looks the same as a fresh award — defend that."

I shouldn't — work has started and actual costs are visible, so cost risk is lower; Weighted Guidelines should reflect reduced risk, lowering fee.

↳ *"Mixed funding on the drawings — rights, and for how long?"*

Government Purpose Rights — Government-purpose use only, converting to unlimited after 5 years.

↳ *"Program insists the subsystem is 'in scope' — your test?"*

Four elements (scope of competition, type, PoP, cumulative cost). Would original offerors have anticipated it? On an FFP-leaning, well-bounded effort, a major subsystem usually wouldn't — cardinal change.

TAKEAWAY Lifecycle questions reward **sequencing**: start lawfully (UCA limits), allocate risk (type + D&F), price it right (certified-data threshold by date, lower fee at definitization), then police scope and data rights. Dates matter in 2026 — always anchor the certified-data threshold to the entered-into date.

The Board Scenario Bank

Ten vague, distractor-laden prompts worked end-to-end with the A-Z Navigator. The point isn't the answer — it's the walk.

HOW TO USE PART XI

Each scenario opens like a real board question: a requiring activity hands you a **conclusion** and some **vague facts** designed to walk you down a wrong path. For each, the *"Distractors planted"* box names the traps, the *walk* runs the five-phase Navigator (Part I-3), and the last step is **what you actually tell the requiring activity — including the pushback**. Cover the walk, work the prompt out loud first, then check yourself. Anchors and SMEs are called out so you can answer "which part?" and "who would you call?"

SCENARIO 1 · COMPETITION · J&A · CONTRACT TYPE / INCENTIVES

The faster-than-light rocket

You're the PCO on a new faster-than-light rocket. The IGCE came in at \$100M. Your Program Manager believes only one company can produce it because of its unique characteristics — and mentions they'd like to offer an incentive to push it to 2× the speed of light, because that would be a great capability. What do you tell your PM?

⚠️ DISTRACTORS PLANTED

(1) "Only one company" — a *belief*, not a market-research fact; the bait is to slide straight to sole source. (2) The "2× lightspeed" incentive — you can't incentivize an *undefined, undemonstrated* outcome; the bait is to bolt an incentive onto a requirement that doesn't exist yet.

- 1 **Frame it.** "Two things to separate: whether this is truly sole-source, and whether the '2×' idea is even a valid requirement. I'm not agreeing to either on a belief."
- 2 **Foundation.** What do I have? An IGCE at \$100M — but what's its basis? I need **market research**, a defined **requirement**, and the **funding** (RDT&E/3600, fiscal year). I'd push the requirement and IGCE back to engineering/the PM.
- 3 **Competition.** At \$100M, **full and open is the default** (CICA). I test the single-source claim with market research *before* accepting it. If only one source truly qualifies, a **6.103-1 J&A** rests on that research — and at \$100M for a *DoD* action it's approved by the **Head of the Procuring Activity / PEO** — the SPE tier starts above \$150M for DoD. "We don't get there on the PM's hunch."
- 4 **Strategy & the incentive.** "2× lightspeed" isn't a measurable, achievable target — it's undefined and likely infeasible. **You can't write an incentive for the undefined.** First define the requirement and a realistic objective; given immature, high-risk development this is a **cost-type** effort (CPFF/CPIF) with an SCO D&F — not an incentive for a miracle.
- 5 **Authority & anchors.** Competition: Part 6 / 10 U.S.C. §3204. Type/incentives: Parts 15 & 16 / R-DFARS 215, 216 / Weighted Guidelines. R&D: Part 35.

6

Tell the PM. "I can't sole-source on a belief and I won't incentivize an undefined capability. Here's the path: we run market research, you and engineering define a real, testable requirement and a defensible IGCE; if the market confirms one source, I'll build a 6.103-1 J&A to the PEO (Head of the Procuring Activity — the DoD SPE tier starts above \$150M); we'll pick a contract type matched to the risk — likely cost-type — and only consider an incentive once there's a measurable, achievable target worth paying for."

ANCHORS & WHO TO LEVERAGE

RFO Parts 6, 15, 16, 35 · R-DFARS 215/216 · J&A 6.104 (J&A document & approval). **SMEs:** engineering/PM (requirement & IGCE), Competition Advocate (J&A), pricing/DCAA (cost realism), FM (3600 funds), JA (sole-source & novel terms).

↳ "The PM insists their lab is the only one — good enough for the J&A?"

No. The J&A stands on *market research*, not the PM's assertion; I document sources sought, RFIs, and why competitors can't meet the need.

↳ "Who approves the J&A at \$100M?"

For a DoD action the SPE tier starts above \$150M — so at \$100M it's the **PEO / Head of the Procuring Activity**, not the SPE. (Non-DoD, \$100M would reach the SPE.)

↳ "If you must move fast, can you incentivize schedule instead?"

Possibly — a schedule incentive on a *defined, achievable* milestone is legitimate; "2× lightspeed" is not. Tie any incentive to something measurable and within reach.

TAKEAWAY The whole scenario is a test of whether you **take the conclusion or test it**. Competition is the default, sole source must be *earned* with market research, and incentives require a defined, achievable requirement. Your answer to the PM is a plan and a pushback — not "yes, sir."

SCENARIO 2 · COMMERCIALITY · CERTIFIED COST/PRICING · ANALYSIS

"It's basically commercial — skip the cost data"

A \$20M sole-source buy for a modified radio. The PM and the contractor both say "it's commercial, so you don't need certified cost or pricing data — just buy it." There was no competition. It's June 2026. What do you do?

⚠️ DISTRACTORS PLANTED

(1) Calling it "commercial" to dodge cost data — commerciality is a *determination you make on evidence*, not a label the contractor picks. (2) "No data needed" — even commercial buys need a *price* basis; and if it's noncommercial and over the threshold, certified data is required absent another exception.

1

Frame it. "Two questions: is it actually a commercial product/service, and what pricing basis do I need either way? I don't accept the label."

- 2 **Foundation & commerciality.** Market research drives a written **commercial product/service determination** (FAR 2.101/Part 12), approved one level above me. A "minor modification" is fine only if it doesn't change form/fit/function — a major mod (e.g., a classified waveform) breaks commerciality.
- 3 **If commercial:** Part 12 — no certified cost or pricing data, but I still establish a fair and reasonable **price** (price analysis: catalog/market, comparison). Default FFP; 52.212-4 terms.
- 4 **If noncommercial:** at \$20M sole-source with no competition, **certified cost or pricing data is required** unless an exception applies — and the threshold matters by date (certified-data threshold is \$2.5M through 30 Jun 2026, \$10M after; \$20M exceeds both). Then cost analysis, Weighted Guidelines profit, DCAA/DCMA support.
- 5 **Anchors.** Part 12 (commercial) / Part 15.4 (pricing) · 10 U.S.C. §§3701–3708 · 52.215-10/-11/-12 (defective pricing) · WGL DFARS 215.404-71.
- 6 **Tell the PM.** "I can't take 'it's commercial' on faith. I'll make a commercial determination on the evidence. If it holds, I price it with analysis — no cost data. If it doesn't, it's noncommercial and at \$20M I need certified cost or pricing data and a full cost analysis. Either way I document why the price is fair."

ANCHORS & WHO TO LEVERAGE

RFO Parts 12 & 15 · R-DFARS 212/215. **SMEs:** pricing/DCAA/DCMA, engineering (the mod's effect on form/fit/function), JA, FM.

↳ *"What would make the data requirement go away even if it's noncommercial?"*

An exception: adequate price competition, prices set by law, a nontraditional/small business (§1826), or an HCA waiver.

↳ *"Define adequate price competition."*

Generally two or more responsible offerors competing independently with price a substantial factor (or expected/prior competition supporting the price).

↳ *"Post-award you learn they withheld cheaper vendor quotes — remedy?"*

Defective pricing — if all five elements are met, a price reduction plus interest; unilateral mod if they won't settle.

TAKEAWAY "Commercial" is a **determination, not a declaration**, and *price analysis is always required*. Don't let a label decide your pricing approach.

SCENARIO 3 · URGENCY · UCA · FISCAL LAW · RATIFICATION

"Start tonight — we'll do the paperwork later"

A JUON lands. The PM says the mission can't wait, wants the only known capable contractor to "start tonight," and offers this fiscal year's expiring O&M to cover it. You later learn a COR already told the contractor to begin. It's late September. Go.

⚠️ DISTRACTORS PLANTED

(1) "Start tonight, paper later" — bait to skip authority/limits. (2) Expiring O&M on a new effort — a color/bona-fide-need trap. (3) The COR already "started" them — that's an unauthorized commitment hiding in the prompt.

- 1 **Frame it.** "Three issues: a possible UAC, the urgent start mechanism, and the funding. I'll take them in order and not let urgency stampede me past the limits."
- 2 **The UAC first.** A COR can't direct work. I open a ratification review (30 days), confirm the six elements, and route it — under SAT to COCO, over SAT to HCA. If funds weren't available/again available, it's not ratifiable as a routine UAC.
- 3 **The lawful fast start: a UCA.** Real urgency + undefined terms → a **UCA** (SCO approval *before* entry; obligate ≤50% of NTE pre-qualifying-proposal, ≤75% after; definitize in 180 days). The sole-source side rides a **6.103-2 urgency J&A** (one-year cap, synopsize within 30 days).
- 4 **The money.** A 12-month severable effort starting in October is *next* year's bona fide need — funding it with expiring O&M is a Time/Purpose problem and ADA risk. I use the proper year's funds; FM/JA confirm.
- 5 **Anchors.** DFARS 217.74 (UCA) · Part 6 / 10 U.S.C. §3204 (urgency) · 31 U.S.C. §§1301/1341/1502 (fiscal) · RFO 1.405 (ratification).
- 6 **Tell the PM.** "I can get you started lawfully tonight with a UCA once the SCO approves — but not on a blank check, and not on expiring money for next year's need. And we have to clean up the COR's direction through ratification. Here's the sequence."

ANCHORS & WHO TO LEVERAGE

R-DFARS 217.74 · RFO Part 6 · appropriations law. **SMEs:** JA (UAC, urgency, novel), FM (color/bona fide need), pricing (NTE/spend plan), Competition Advocate (J&A), SCO (UCA entry).

- ↳ "Pre-qualifying-proposal, how much can you obligate on the UCA?"
≤ 50% of NTE; ≤75% after a qualifying proposal; definitize within 180 days (HCA +90).
- ↳ "The funds the COR 'committed' expired — still ratifiable?"
No — the funds-available-then-and-now element fails; pivot to a quantum-meruit path with JA/FM.
- ↳ "Why not just sole-source a normal contract fast?"
If terms can be defined quickly, do that. The UCA is for when you must bind *before* terms are settled — it carries limits precisely because it's risky.

TAKEAWAY Urgency changes the *mechanism*, not the *rules*. Name the hidden UAC, start lawfully via a UCA with its limits, and never let "use it or lose it" money drive a fiscal-law violation.

SCENARIO 4 · PROCUREMENT INTEGRITY (PIA)

The proposal that went to the wrong inbox

Mid-evaluation on a competitive source selection, a teammate emails one offeror's cost volume to a competitor by mistake. The competitor replies, "No worries, deleted it — didn't even read it." The PM wants to keep the schedule and "just move on." What now?

⚠️ **DISTRACTORS PLANTED**

(1) "Deleted it, didn't read it" — bait to treat it as no-harm and skip the process. **(2)** "Keep the schedule" — pressure to bypass the integrity clock. Perceived compromise still counts.

- 1** **Frame it.** "This is a potential PIA violation — disclosure of contractor bid/proposal data. I own the response and I'm on a clock; I don't 'just move on.'"
- 2** **Work the clock (20 business days).** Notify **JA first**; preserve and gather the facts; direct the receiving offeror to delete all copies and get a **signed affidavit**; notify affected parties; get an **MFR** from the sender.
- 3** **Make the impact determination.** I write whether the disclosure *impacts* the procurement. **No impact** → statement + determination to the Clearance Approval Authority and Competition Advocate (coordinated with JA/policy). **Impact** → elevate to the HCA, who may cancel, disqualify, or void — with debarment/criminal exposure.
- 4** **Anchors.** Part 3.104 / 41 U.S.C. §§2101–2107 · SSI cover sheets · two-person review.
- 5** **Tell the PM.** "I can't bury this to save schedule. I have 20 business days, JA is already in, and I'll determine whether it taints the competition. If it doesn't, we proceed with concurrence; if it does, the HCA decides. Protecting the integrity of the award *is* protecting the schedule."

ANCHORS & WHO TO LEVERAGE

RFO Part 3.104 · 41 U.S.C. §§2101–2107. **SMEs:** JA (first call), the SSA, contracting policy/Competition Advocate, security if classified.

↳ *"Their 'I deleted it' affidavit — does that end it?"*

No — it informs my impact determination but I still document and decide; perceived advantage can still taint the buy.

↳ *"Who can void an award if one already happened?"*

The HCA — with possible debarment, suspension, and criminal referral.

↳ *"How would two-person review have prevented this?"*

A page-by-page check before distribution, encryption with separately-sent passwords, SSI cover sheets, and disabled email auto-populate.

TAKEAWAY Integrity issues are **never** a "keep moving" call. Notify JA first, run the 20-day process, and let the impact determination — not schedule pressure — drive the outcome.

"Just pick the cheapest and award by Friday"

A \$150M competitive development source selection. Leadership wants you to "make it LPTA, pick the cheapest, skip discussions, and award by Friday." The eval team also wants to hold back one offeror's significant weakness "to be fair." The likely loser is the incumbent. Your move?

⚠️ DISTRACTORS PLANTED

(1) LPTA on a complex, high-risk development — wrong tool. (2) "Skip discussions / award Friday" — schedule pressure vs. a defensible record. (3) Hiding a significant weakness — that breaks meaningful discussions and hands the loser a protest.

- 1 **Frame it.** "Best-value approach, discussions integrity, and protest exposure. At \$150M development, LPTA is almost certainly the wrong method."
- 2 **The method.** Immature/high-risk development → **trade-off**, not LPTA. Section L/M traceable; price/cost and past performance mandatory; quality via a non-cost factor. SSAC is in play (mandatory over \$100M).
- 3 **Discussions.** If I open discussions, they must be **meaningful** — I address *every* significant weakness with each offeror in the range. Hiding one makes the discussions defective. Award-without-discussions is allowed only if the solicitation reserved it and only minor clarifications are needed — discouraged here.
- 4 **Protect the award.** Contemporaneous SSEB reports, a CRDD, and an integrated SSDD that explains the trade-off. Expect a protest at this value; build the record to survive it.
- 5 **Anchors.** Part 15.2 / DoD SS Procedures · 52.215-1 · Part 33 (protests) · 31 U.S.C. §§3551–3556 · §875 (incumbent loser-pays).
- 6 **Tell leadership.** "I can move fast, but I won't make a \$150M dev buy LPTA, and I won't hide a weakness — that's how we lose at GAO and restart in 100 days. Trade-off, meaningful discussions, clean SSDD. That's the *fast* path, because it doesn't get overturned."

ANCHORS & WHO TO LEVERAGE

RFO Part 15.2 & 33 · DoD Source Selection Procedures. **SMEs:** JA (record & protest), SSA/SSAC, pricing (realism on cost-type), small business.

↳ "Loser files at GAO 6 days after debrief — stayed?"

Check both triggers: within 5 days of debrief *or* 10 days of award, whichever is later. If within, CICA stay applies; override needs written HCA on urgency.

↳ "The incumbent's protest looks frivolous — exposure to them?"

If the §875 framework is in effect (confirm the implementing rule), an incumbent protesting a follow-on loss can face up to 5% withholding on a bridge/extension, forfeited if GAO dismisses the protest as frivolous.

↳ "Who actually compares the proposals?"

The SSA (aided by the SSAC). The SSEB only evaluates each against Section M.

TAKEAWAY The "fast" answer leadership wants is the slow one if it gets overturned. Right method (trade-off), meaningful discussions, and a protest-proof record *is* speed.

SCENARIO 6 · OCI

The advisor who wrote your requirement

Your systems-engineering support contractor helped draft the SOW and IGCE for a new competitive buy — and now wants to compete for it. They promise to "firewall the team." The PM loves their work and wants them in the pool. What do you tell the PM?

⚠️ **DISTRACTORS PLANTED**

(1) "They'll firewall it" — bait to treat a structural conflict as curable with a memo. **(2)** "They're great, let them bid" — preference for a vendor pulling you toward the wrong call. Actual *and* perceived conflicts count.

- 1** **Frame it.** "This is an OCI — specifically **biased ground rules**: they shaped the very requirement they'd compete under. That's the hardest to mitigate."
- 2** **Analyze & choose a tool.** Avoid / Neutralize / Mitigate. For biased ground rules a firewall rarely cures it because the advantage is baked into the requirement — **exclusion is the likely outcome**. I start with a white paper to test feasibility before any full plan.
- 3** **Process & decision.** Before issuing the solicitation, I recommend a course of action to the HCA. The OCI panel advises, but the **PCO has final say**. A waiver is possible only if benefit outweighs the conflict — **HCA, non-delegable**.
- 4** **Anchors.** Part 9.5 (9.504/9.505) / R-DFARS 209.5.
- 5** **Tell the PM.** "I can't just firewall this — they wrote the ground rules. Most likely they're excluded from this competition; if the value of their participation truly outweighs the conflict, that takes a non-delegable HCA waiver. We decide this *before* solicitation, not after offers."

ANCHORS & WHO TO LEVERAGE

RFO Part 9.5. **SMEs:** JA (legal review), Competition Advocate/policy (OCI panel), the reviewing official, SCO.

↳ *"Different facts — they only had a competitor's cost data. Which OCI?"*

Unequal access to non-public information — no bias needed, often mitigable by removing/ firewalling the data and people.

↳ *"They protest the exclusion — likely outcome?"*

If you waived and they protest the waiver, GAO is likely to dismiss; a well-documented exclusion for biased ground rules is defensible.

↳ *"Who has final say on the mitigation plan?"*

The PCO — stress that.

TAKEAWAY Name the OCI *type* first — it dictates the fix. Biased ground rules usually means exclusion, not a firewall, and the PCO owns the call.

SCENARIO 7 · MODIFICATIONS · SCOPE · CARDINAL CHANGE

"Just add it to the existing contract"

An FFP production contract is going well. The PM wants to add a major new subsystem and two more years of effort "by modification" to avoid a new competition — "it's the same program, so it's in scope." It'd be the contract's tenth mod. Your call?

△ DISTRACTORS PLANTED

(1) "Same program = in scope" — conflating program with contract scope. (2) "Avoid a new competition" — the tell that this is really a sole-source workaround. (3) Tenth mod — cumulative scope creep hiding in plain sight.

- 1 Frame it.** "Scope question: is this within the contract, or a **cardinal change** the Changes Clause can't authorize? On an FFP production contract, a major new subsystem + two years is a red flag."
- 2 Four-element test.** Scope of competition (would original offerors have anticipated it? — no), contract type (FFP = tighter scope), period of performance (a 2-year add is large), and cost/price — and I look at the **cumulative** picture across all ten mods, not just this one.
- 3 Decision.** If it's beyond original scope, it's a cardinal change → **new competition or a J&A**, not a mod. Scope creep means a series of "in-scope" mods can collectively bust scope.
- 4 Anchors.** Part 43 (43.2; Changes 52.243-x) / R-DFARS 243 · Part 6 if it must be justified sole source.
- 5 Tell the PM.** "Same program doesn't mean same contract scope. A major new subsystem plus two years wouldn't have been anticipated by the original competitors — that's a cardinal change. I either compete it or justify sole source; I can't launder new work through a modification."

ANCHORS & WHO TO LEVERAGE

RFO Part 43 & 6. **SMEs:** JA (scope/cardinal change), pricing (definitization of any in-scope change), Competition Advocate (if sole source).

↳ "Each prior mod looked in-scope — why re-examine now?"

Scope creep — I compare the cumulative contract to the original, so a chain of small mods can collectively go out of scope.

↳ "You verbally tell them to start the subsystem — what did you create?"

A constructive change — equitable adjustment owed, and they must assert within 30 days of incurring cost.

↳ "Right way to extend the period of performance?"

Mutual agreement (bilateral), not the Changes Clause.

TAKEAWAY "Just mod it" is the board's favorite shortcut. Run the four-element test on the *cumulative* contract; a cardinal change needs competition or a J&A.

SCENARIO 8 · TERMINATIONS

"Default them today"

A non-commercial supply contractor is behind and quality is slipping. The PM is furious and wants you to "terminate for default today." There's a late government-furnished property delay in the mix. Walk it.

⚠️ **DISTRACTORS PLANTED**

(1) "Default today" — bait to skip due process. **(2)** The GFP delay — a possible *excusable* cause that could make a T4D wrongful. **(3)** Emotion driving a legal decision.

- 1** **Frame it.** "T4D is a remedy of **last resort** and it's appealable — if I get it wrong, it converts to a T4C and I owe costs plus a procurement fight. I slow down."
- 2** **Due process.** Document the failures; issue a **Cure Notice** (10 days); evaluate the response — and whether the delay is **excusable** (the late GFP may well be a Government-caused, excusable delay). Then a **Show Cause** if still warranted.
- 3** **The GFP angle.** If our late GFP caused the slip, default may be improper and the contractor may have an REA. I sort entitlement before I terminate.
- 4** **Alternatives.** If default isn't clearly supportable, weigh a **T4C** (costs + reasonable profit, no anticipatory profit) or a no-cost settlement.
- 5** **Anchors.** Part 49 (cure/show-cause; 52.249-x) — *commercial would be 52.212-4 Cause / R-DFARS 249.*
- 6** **Tell the PM.** "I share the frustration, but I can't default them today. If our GFP caused the delay, a default is wrongful and costs us. I'll cure-notice, assess excusability with JA, and if default is solid we proceed — otherwise a T4C protects the Government better."

ANCHORS & WHO TO LEVERAGE

RFO Part 49 / R-DFARS 249. **SMEs:** JA (appealable T4D), DCMA (performance/GFP record), pricing (settlement).

↳ "When is a Cure Notice not required?"

Failure to timely deliver goods, defaults under a clause not requiring notice, or construction under 52.249-10 — but when in doubt, send one.

↳ "Same facts on a commercial contract — what governs?"

Not Part 49 — Termination for Cause under 52.212-4 (FAR 12.403).

↳ "T4C — what does the contractor get?"

Costs incurred plus reasonable profit on work done; no anticipatory profit.

TAKEAWAY A T4D is a last resort, not a reflex. Run cure → show-cause, test excusability (especially when GFP is late), and remember a wrongful default becomes a T4C.

SCENARIO 9 · SMALL BUSINESS · 8(A)

"Sole-source 8(a) it — no J&A, ever"

A \$120M services requirement. A senior leader says, "Just sole-source it 8(a) to that firm we like — 8(a) never needs a J&A, and it's faster." Market research shows several capable small businesses. It's 2026. What do you tell them?

△ DISTRACTORS PLANTED

(1) "8(a) never needs a J&A" — true only *under* the ceiling. **(2)** "The firm we like" — ignores Rule of Two and the competitive-8(a) path. **(3)** Eligibility assumed — the 8(a) program went strictly race-neutral in 2026.

- 1** **Frame it.** "Two corrections: a \$120M sole-source 8(a) is *over* the no-J&A ceiling, and with several capable small businesses I should be competing, not hand-picking."
- 2** **The ceiling.** Sole-source 8(a) needs no J&A only **up to \$100M (DoD)**. At \$120M, a justification *is* required — the "never needs a J&A" claim is wrong here.
- 3** **Rule of Two / competition.** Market research shows ≥2 capable small businesses → I look at a **set-aside** or **competitive 8(a)** (value well over the \$5.5M 'other' line), not a directed sole source to a favorite.
- 4** **Eligibility currency.** As of 2026 the 8(a) program is strictly race-neutral (Jan 2026 guidance; a Jun 2026 proposed rule would end the rebuttable presumption). I **verify each firm's current eligibility** before relying on the program; SBA must accept/approve.
- 5** **Anchors.** Part 19 (19.108) / 13 CFR 124 / 15 U.S.C. §637(a); DD 2579.
- 6** **Tell the leader.** "I can use 8(a), but not the way described: at \$120M a sole-source 8(a) needs a justification, several small firms can compete, and I have to verify current eligibility under the 2026 rules. Competitive 8(a) gets you a strong award that survives scrutiny."

ANCHORS & WHO TO LEVERAGE

RFO Part 19 / 13 CFR. **SMEs:** SB Specialist & SBA, JA, Competition Advocate (any justification).

- ↳ *"Under \$100M sole-source 8(a) — J&A?"*
No J&A for DoD sole-source 8(a) up to \$100M (civilian \$30M) — but verify eligibility and SBA acceptance.
- ↳ *"Only one of the capable firms actually bids — award?"*
Under Rule of Two, if only one offer is received you may award to it.
- ↳ *"Subcontracting plan if the eventual prime isn't small?"*
Required at/above \$900K (\$2M construction).

TAKEAWAY Socioeconomic authorities have *ceilings and eligibility rules*. "8(a) never needs a J&A" and "pick the firm we like" are both traps — compete where you can and verify eligibility in a reform year.

SCENARIO 10 · DATA RIGHTS · R&D / OTA

The "limited rights" stamp on work you paid for

On a Government-funded development effort, the contractor delivers drawings stamped "limited rights." The PM wants to just accept the markings to keep schedule, and separately suggests "doing the next phase as an OTA so we don't deal with all this." It's 2026. Go.

⚠️ DISTRACTORS PLANTED

(1) "Just accept the marking" — but rights follow *who funded* development. (2) "OTA to avoid the rules" — OTAs are a tool, not an escape hatch, and have their own data-rights handling. (3) Schedule pressure vs. protecting Government rights.

- 1 **Frame it.** "Rights track funding. Fully Government-funded technical data carries **unlimited rights** — a 'limited rights' stamp is inconsistent and the burden is on the contractor to justify any restriction."
- 2 **Challenge the assertion.** I issue a written **challenge notice** (contractor has 60 days; I can challenge up to 3 years post-completion). Until appeals resolve, I hold the data per the original assertion and don't release it — I don't just accept the marking.
- 3 **Right level by funding.** Government-funded → unlimited; mixed → Government Purpose Rights (converts to unlimited after 5 years); private → limited (data) / restricted (software). No reverse-engineering of software.
- 4 **The OTA idea.** An OTA can be excellent for nontraditional partners and prototypes (10 U.S.C. §§4021–4022), but it's *not* a way to dodge data-rights diligence — negotiate IP up front. Pick the instrument for the work, not to avoid rules.
- 5 **Anchors.** Part 27 / R-DFARS 227.71 (252.227-7013/7014/7017) · Part 35 / 10 U.S.C. §§4021–4022 (OT).
- 6 **Tell the PM.** "I won't accept a 'limited rights' stamp on data we fully funded — I'll challenge it and hold the data meanwhile. And an OTA doesn't make data rights disappear; if it fits the next phase, great, but we negotiate IP deliberately either way."

ANCHORS & WHO TO LEVERAGE

RFO Part 27 & 35 · R-DFARS 227.71. **SMEs:** IP counsel/JA, engineering (who funded what), S&T for the OTA.

↳ "Mixed funding instead — rights and duration?"

Government Purpose Rights — Government-purpose use only, converting to unlimited after 5 years.

↳ "Contractor ignores the challenge — next step?"

After the 60-day window I issue a final decision; they may appeal to COFC/Board within 90 days.

↳ "Can you reverse-engineer their software to get around it?"

No — reverse engineering of computer software is prohibited.

TAKEAWAY Rights follow funding, the burden is on the contractor, and instruments like OTAs are chosen for the work — never to dodge diligence. Don't trade Government rights for schedule.

Appendices A–G

The currency appendix, quick-reference cards, the approval ladders, the acronym glossary, sources, closing templates, and the RFO/R-DFARS part map.

APPENDIX A

2025–2026 Regulatory Changes & Updated Thresholds

All thresholds in this guide reflect the **1 October 2025** inflation adjustment. If a threshold comes up at the board, **lead with the current number** and know that most values changed in fall 2025. Everything below was verified against official public sources as of **June 2026** — treat it as a snapshot and confirm at the source.

October 2025 inflation adjustment (FAC 2025-06 / DFARS Case 2024-D002)

The five-year statutory inflation adjustment under 41 U.S.C. §1908 raised nearly every major threshold by roughly 20–35%.

Threshold	Was → Now
Micro-purchase threshold	\$10,000 → \$15,000
Simplified Acquisition Threshold (SAT)	\$250,000 → \$350,000
FAR 13.5 commercial-procedures ceiling	\$7.5M → \$9M
Certified cost-or-pricing-data threshold	\$2M → \$2.5M (see §1804 below)
SB subcontracting-plan trigger	\$750K/\$1.5M → \$900K / \$2M (construction)
Public-display band	\$15K–\$25K → \$20K–\$25K
J&A / D&A tiers	CO ≤\$900K · CA ≤\$20M · HPA/PEO ≤\$90M (DoD ≤\$150M) · SPE >\$90M (DoD >\$150M)
8(a) competitive (mfg / other)	\$6.5M/\$4M → \$8.5M / \$5.5M
8(a) civilian sole-source cap	\$22M → \$30M
HUBZone & WOSB sole source (mfg / other)	\$6.5M/\$4M → \$8.5M / \$5.5M
SDVOSB sole source (mfg / other)	\$6.5M/\$3.5M → \$8.5M / \$5M
DCMA field-pricing trigger	\$2M → \$2.5M
CID & REA certification (move with SAT)	\$250K → \$350K

FY2026 NDAA (P.L. 119-60, signed 18 December 2025)

- **§1804 — certified-data threshold to \$10M** for contracts entered into **after 30 June 2026** (implementing rule expected around that date; \$2.5M applies until then). Estimated to cut contracts requiring certified data by

~80%.

- **§1806 — CAS:** full coverage \$50M → **\$100M**; per-contract trigger \$2.5M → **\$35M**; both effective for contracts entered after 30 June 2026. (CAS monetary-threshold rule published in the Federal Register 20 March 2026.)
- **§1826** — nontraditional defense contractors and all small businesses exempt from FAR Part 31 cost principles and certified cost or pricing data.
- **§1822** — commercial-first determination required before any noncommercial DoD procurement.
- **§1823** — expands Commercial Solutions Openings (removes the "innovative" qualifier; permits sole-source follow-on production).
- **§875 — "loser-pays" protests:** incumbent-only; COs may withhold up to 5% of incumbent payments on an extension/bridge during a GAO protest; forfeiture if the protest is dismissed as frivolous/without reasonable basis. DoD was directed to revise the DFARS by ~May 2026 — confirm the rule is now in effect.

FY2025 NDAA §885

DoD task-order GAO protest threshold raised from \$25M to **\$35M** (effective Dec 2024); civilian agencies remain at \$10M.

Revolutionary FAR Overhaul (EO 14275, 15 April 2025)

The most comprehensive FAR rewrite since 1984, implemented through **class deviations** (agencies act within 30 days) and formal rulemaking. **DoD's first DFARS class-deviation tranche took effect 1 February 2026**, with additional tranches rolling out (a later tranche took effect 16 March 2026); Phase 2 notice-and-comment rulemaking continued through mid-2026. Key changes: over 1,600 non-statutory requirements removed; streamlined commercial buying; greater CO discretion in source selection and contract-type selection; **Part 19 set-aside decisions for orders under multiple-award contracts made discretionary and non-protestable (Rule of Two maintained)**; security content relocated to a new Part 40. **Always verify the current text at acquisition.gov/far-overhaul** (and the FAR Companion v2).

Other 2025–2026 moving pieces

- **Progress payments** — DoD Class Deviation 2020-O0010 Rev 2 (active as of Mar 2026): 80% large business / 95% DoD small business (standard FAR 80% / 85%); UCAs capped at 80%.
- **CMMC** — Phase 1 began 10 Nov 2025 (Level 1/2 self-assessments in select contracts; clause DFARS 252.204-7021); Phase 2 (C3PAO certifications) ~10 Nov 2026; Phase 3 ~2027; full implementation Phase 4 ~Nov 2028.
- **SBA 8(a) race-neutral shift** — 22 Jan 2026 guidance eliminated race-based presumptions; a proposed rule (11 Jun 2026) would end the rebuttable presumption entirely. Admissions dropped and many firms were suspended — verify eligibility before use.
- **SBIR/STTR — REAUTHORIZED.** Authority lapsed 30 Sep 2025 but was **reauthorized 13 April 2026** (Small Business Innovation and Economic Security Act of 2026) through **30 Sep 2031**, adding a Phase II "strategic breakthrough" vehicle (~\$30M ceiling) and increased foreign-risk screening. New solicitations have resumed — **older notes saying "expired" are stale.**

APPENDIX B

Threshold Quick-Reference Card

The numbers a board expects on demand. Lead with the current figure; flag the 1 Jul 2026 certified-data/CAS change when it's relevant.

Concept	Current figure
Micro-purchase threshold (GPC)	\$15,000
Simplified Acquisition Threshold (SAT)	\$350,000
SAP synopsis line	Over \$25,000
FAR 13.5 commercial-procedures ceiling	\$9M
Certified cost or pricing data (truthful cost or pricing data)	\$2.5M (→ \$10M after 30 Jun 2026)
CID / REA certification	\$350K (= SAT)
Market research required (non-standard items)	Over \$7.5M (currency: 18 months)
SB subcontracting plan (non-small prime)	\$900K (\$2M construction)
Claim certification (CDA)	Over \$100K
CDA decision clock (>\$100K)	60 days (else deemed denial)
GAO task-order protest (DoD / civilian)	Over \$35M / \$10M
IDIQ order debrief (RFO 16.507)	Over \$7.5M
SSAC required	Over \$100M (PCO is SSA under \$10M)
Construction LDs (RFO 11.403, CO judgment) / bonds	per judgment / over \$150K
UCA obligation caps (before / after qual. proposal)	50% / 75% of NTE; definitize 180 days
Progress payments (large / DoD small)	80% / 95%
Commercial advance payment cap	15%
Fee caps (R&D / most cost-type / A&E)	15% / 10% / 6%
Expired funds available for adjustments	5 years

APPENDIX C

Approval-Authority Ladders

Roles, not office symbols — confirm your activity's current delegations. The J&A and fair-opportunity D&A use the *same* tiers.

Value	Approver
≤ \$900K	Contracting Officer (cert = approval)
≤ \$20M	Competition Advocate
≤ \$90M (DoD ≤\$150M)	Head of Procuring Activity / PEO
> \$90M (DoD >\$150M)	SPE

Ratification

Value	Approver
Under SAT	COCO
Over SAT (\$350K)	HCA (deleg. SCO)

T&M D&F

Condition	Approver
Up to \$10M	COCO
Over \$10M	SCO
Periods over 3 yrs	HCA

Value	Approver (role)
< \$10M	PCO
\$10M–\$75M	3 levels below SCO
\$75M–\$200M	2 levels below SCO
\$200M–\$500M	1 level below SCO
\$500M–\$1B	SCO
> \$1B	SAF/AQC

UCA approval

Condition	Approver
Default	HCA (deleg. SCO)
Under \$50M	No lower than COCO
Before entry	SCO approval required

Cost-type & OCI waiver

Action	Approver
Cost-type D&F	SCO
OCI waiver	HCA (non-deleg.)
Certified-data waiver	HCA

APPENDIX D**Board Acronym Glossary****A&AS / A&E**

Advisory & Assistance Services / Architect-Engineer.

ADA

Anti-Deficiency Act.

ADR

Alternative Dispute Resolution.

ASBCA

Armed Services Board of Contract Appeals.

BAA

Broad Agency Announcement.

CA**IDIQ / MAC**

Indefinite-Delivery/Indefinite-Quantity / Multiple-Award Contract.

IGCE

Independent Government Cost Estimate.

IPT

Integrated Product Team.

IUID

Item Unique Identification.

J&A

Justification & Approval.

Competition Advocate.

CAR / CRDD

Comparative Analysis Report / Competitive Range Determination & Decision.

CAS

Cost Accounting Standards.

CDA

Contract Disputes Act.

CICA

Competition in Contracting Act.

CID

Commercial Item Determination — legacy term; now a *commercial product/service determination* (FAR 2.101 / Part 12).

CLIN

Contract Line Item Number.

CMMC

Cybersecurity Maturity Model Certification.

COCO

Chief of the Contracting Office.

COFC

U.S. Court of Federal Claims.

COR

Contracting Officer's Representative.

CPFF / CPIF / CR

Cost Plus Fixed Fee / Cost Plus Incentive Fee / Cost Reimbursement.

D&F / D&A

Determination & Findings / Determination & Approval.

DCAA / DCMA

Defense Contract Audit Agency / Defense Contract Management Agency.

EPA

Economic Price Adjustment.

FAPIS

Federal Awardee Performance & Integrity Information System.

FCCOM

Facilities Capital Cost of Money.

FFP

Firm-Fixed-Price.

FPDS-NG

Federal Procurement Data System.

FPIF / FPR

Fixed-Price Incentive Firm / Final Proposal Revision.

JUON / UON

Joint Urgent / Urgent Operational Need.

LPTA

Lowest-Price Technically Acceptable.

MFR

Memorandum for Record.

MIPR

Military Interdepartmental Purchase Request.

NAICS

North American Industry Classification System.

NTE

Not-to-Exceed.

OCI

Organizational Conflict of Interest.

OTA

Other Transaction Agreement.

PBP / PWS / SOO

Performance-Based Payment / Performance Work Statement / Statement of Objectives.

PCO

Procuring Contracting Officer.

PEO

Program Executive Officer.

PIA / SSI

Procurement Integrity Act / Source-Selection Information.

PNM

Price Negotiation Memorandum.

PTA

Point of Total Assumption.

QASP

Quality Assurance Surveillance Plan.

R-DFARS / RFO

Revised DFARS / Revolutionary FAR Overhaul.

REA

Request for Equitable Adjustment.

RFP / RFQ / RFI

Request for Proposals / Quotations / Information.

SAP / SAT

Simplified Acquisition Procedures / Threshold.

SBIR / STTR

Small Business Innovation Research / Technology Transfer.

SCO / SPE

Senior Contracting Official / Senior Procurement Executive.

SDVOSB / WOSB / EDWOSB

FSS

Federal Supply Schedule.

GFP / GFE

Government-Furnished Property / Equipment.

GPR

Government Purpose Rights.

GWAC

Government-Wide Acquisition Contract.

HCA

Head of the Contracting Activity.

HUBZone

Historically Underutilized Business Zone (small-business program).

Service-Disabled Veteran-Owned / Women-Owned / Economically Disadvantaged WOSB.

SSA / SSAC / SSEB / SSDD

Source-Selection Authority / Advisory Council / Evaluation Board / Decision Document.

T&M / LH

Time-and-Materials / Labor-Hour.

T4C / T4D

Termination for Convenience / for Default.

Truthful Cost or Pricing Data

The certified cost-or-pricing-data statute, 10 U.S.C. §§3701–3708 / 41 U.S.C. §§3501–3509 — long called the Truth in Negotiations Act ("TINA"); boards still say "TINA" colloquially.

UAC

Unauthorized Commitment (distinct from UCA / UCO).

UCA / UCO

Undefinitized Contract Action / Unpriced Change Order.

APPENDIX E

Sources & How to Verify

Never quote a threshold or citation from memory at a board without knowing where to confirm it. These are the public, non-CAC sources behind this guide.

RFO / R-DFARS text

acquisition.gov/far-overhaul — overhauled FAR parts, model deviation texts, and the FAR Companion v2; DoD DARS pages for DFARS class deviations.

Thresholds & rules

Federal Register (FAC 2025-06 inflation rule; CAS rule of 20 Mar 2026) and the FY2026 NDAA (P.L. 119-60) for §1804/1806/1822/1823/1826/875.

Small business

SBA.gov for 8(a) race-neutral guidance and the Jun 2026 proposed rule; the SBIR/STTR reauthorization (Apr 2026) and current agency solicitation guidance.

DAF-specific procedure

The **DAF Contracting Compass** is the authoritative DAF resource — but it is **CAC-restricted**; confirm clearance matrices and local delegations there. Also DAFIs (e.g., 63-101/20-101, 63-138).

Fiscal law

GAO "Red Book" (Principles of Federal Appropriations Law) for TPA, bona fide need, and severable-services questions.

Case & protest

GAO decisions; ASBCA and COFC opinions for disputes, defective pricing, scope, and terminations.

⚠ THE STANDING CAVEAT

This volume references the **RFO and R-DFARS**, not the retired FAR/DFARS/DAFFARS. FAR part numbers appear as *concept anchors*; the governing text has moved. Everything here was current as of **June 2026** — re-verify before relying on any figure at your board.

APPENDIX F

The 60-Second Answer Templates

When the question lands and your mind blanks, fall back to a template. Each maps to the **I-R-A-C-D** method — fill the brackets out loud.

UNIVERSAL OPENER

"The core issue here is *[framework — competition / authority / fiscal law / integrity]*. The governing standard is *[rule + elements + current threshold]*. Applied to these facts, *[map rule to facts]*. That sits under *[RFO/R-DFARS part / D&F / clause]* and is approved by *[role]*. So I'd *[decision]*, document it in *[MFR/D&F/PNM/determination]*, and coordinate with *[JA/FM/SB/requiring activity]*."

SOLE-SOURCE / COMPETITION

"Over SAT, CICA requires full and open unless an exception. This fits *6.103-[#]*; my J&A lives on market research; approved by *[CA/PEO/SPE per tier]*; posted to SAM.gov within 14 days (30 for urgency)."

FISCAL LAW

"I'd run Time-Purpose-Amount: bona fide need / Purpose Statute / Anti-Deficiency Act. Severable services ≤ 12 months crossing FYs; non-severable fully funded. Expired funds adjust for 5 years."

UNAUTHORIZED COMMITMENT

"That's a UAC — apparent authority isn't binding. I investigate within 30 days, test the six ratification elements, and route to *[COCO under SAT / HCA over SAT]*; if an element fails, a quantum-meruit path with JA."

PROTEST

"At GAO the CICA stay triggers if filed within 5 days of debrief / 10 days of award. Override is written HCA on urgency. I assemble the Agency Report and CO's Statement of Facts; implement recommendations within 60 days."

CERTIFIED COST OR PRICING DATA

"Price analysis is always required. Certified data if over the certified-data threshold — *\$2.5M through 30 Jun 2026, \$10M after* — absent an exception. Defective pricing needs all five elements."

SCOPE / MODS

"Run the four-element scope test on the cumulative contract. If it exceeds original scope it's a cardinal change — new competition or J&A, not a mod."

CLOSE EVERY ANSWER THE SAME WAY

Decision → documentation → coordination → *stop*. Then take the follow-up. A clean stop tells the panel you're confident and gives them the opening to probe — which is exactly where you want to be. Decisions from a place of knowledge. Good luck at the board.

Where Am I? — RFO / R-DFARS Part Map & SME Roster

When the board asks "which part of the RFO would you be in?" or "who would you call?", this is your map. Part *numbers* are retained as anchors under the RFO (the governing text moved); R-DFARS tracks via DoD class deviations and PGI. **Statute citations reflect the 2021 Title 10 recodification** (even-numbered §23xx/§2371 → §3xxx/§4xxx) — verify the live text before relying on it.

Topic → governing parts, key authority/clauses, and the SMEs to leverage

Topic	RFO part / R-DFARS	Key statute & clauses	SMEs to leverage
Authority & ratifications	Part 1 (1.405) / DFARS 201.602	RFO 1.405	JA, FM
Procurement integrity (PIA)	Part 3.104 / DFARS 203	41 U.S.C. §§2101–2107	JA, security
OCI	Part 9.5 / DFARS 209.5	FAR 9.505	JA, Competition Advocate
Responsibility	Part 9.1 / DFARS 209.1	FAR 9.104; FAPIIS / SAM	Pricing, JA, SBA (CoC)
Competition & J&A	Part 6 / DFARS 206	10 U.S.C. §§3201–3206; RFO 6.104	Competition Advocate, JA
Required sources	Part 8 / DFARS 208	RFO 8.102–8.103; FSS 8.4	GSA, SB Specialist
Market research	Part 10 / DFARS 210	FAR 10.001	Engineering/PM, SB
Commercial products/services	Part 12 / DFARS 212	FAR 2.101; clause 52.212–4	Pricing, JA
Simplified acquisition (SAP)	Part 13 / DFARS 213	FAR 13; GPC rules	SB Specialist, GPC/A-OPC
Truthful cost or pricing data	Part 15.4 / DFARS 215.4	10 U.S.C. §§3701–3708; 52.215-10/-11/-12; WGL DFARS 215.404-71	DCAA, DCMA, pricing
Source selection	Part 15.2 / DFARS 215.3 + DoD SS Procedures	RFO 15.2; clause 52.215-1	SSEB/SSA team, JA
Contract types	Part 16 / DFARS 216	FAR 16; Weighted Guidelines	Pricing, JA
Fair opportunity / IDIQ	Part 16.5 / DFARS 216.5	FAR 16.505	Competition Advocate, JA
Options	Part 17.2 / DFARS 217.2 (217.204)	RFO 17.204-1	FM, pricing
Interagency / Economy Act	Part 17.5 / DFARS 217.78	31 U.S.C. §1535	FM, JA, servicing agency

Topic	RFO part / R-DFARS	Key statute & clauses	SMEs to leverage
UCAs	DFARS 217.74 / FAR 16.603	DFARS 217.7404; clause 252.217-7027	Pricing, JA, FM
Small business	Part 19 / DFARS 219	15 U.S.C. §§637, 644; 13 CFR 121/124/125/126/127	SB Specialist, SBA
Data rights	Part 27 / DFARS 227.71–.72	10 U.S.C. §§3771–3775; 252.227-7013/7014/7017	IP counsel, engineering
Contract finance	Part 32 / DFARS 232	52.232-16 (progress); FAR 32.10 (PBP)	FM, DCMA
Fiscal law (TPA)	Appropriations law	31 U.S.C. §§1301, 1341, 1502; GAO Red Book	FM, JA
Protests	Part 33.1 / DFARS 233	31 U.S.C. §§3551–3556; 4 CFR 21	JA / AFLOA-JAQ
REAs & claims (CDA)	Part 33.2 / DFARS 233	41 U.S.C. §§7101–7109	JA, pricing, DCAA
R&D / OTAs / BAA / SBIR	Part 35 / DFARS 235	10 U.S.C. §§4021–4022 (OT); 15 U.S.C. §638 (SBIR); RFO 35.102 (BAA)	S&T, JA, SB
Construction / A-E / services	Parts 36 & 37 / DFARS 236–237	40 U.S.C. §§1101–1104 (Brooks A-E); RFO 37.1 (PBA)	Engineering, labor advisor, JA
Modifications & scope	Part 43 / DFARS 243	FAR 43.2; clauses 52.243-x (Changes)	JA, pricing
Government property	Part 45 / DFARS 245	clause 52.245-1 + six DFARS 252.245 clauses	Property administrator, DCMA
Terminations	Part 49 / DFARS 249 (commercial: 12.403)	52.249-x; commercial 52.212-4	JA, pricing, DCMA
Clearance & peer review	DAF policy (Compass — CAC) / DFARS 201.170	Local clearance matrix; DoD peer reviews	Clearance authority, policy, JA
Security / CUI / CMMC	RFO Part 40 / DFARS 204.73 & 204.75	clauses 252.204-7012 / 7021	Security/ISSM, JA

KNOW COLD · THE TITLE 10 RECODIFICATION (A BOARD FAVORITE "GOTCHA")

The FY2021 NDAA reorganized Title 10 — the old even-numbered acquisition statutes moved. If you cite the old number a sharp panelist may catch it:

- Competition (CICA): **§2304** → **§§3201–3206** (full & open §3201; exceptions §3204).
- Truthful cost or pricing data: **§2306a** → **§§3701–3708** (the statute formerly "TINA").
- Other Transactions: **§2371/§2371b** → **§§4021–4022**.
- Technical data rights: **§2320–§2321** → **§§3771–3775**.

AT THE BOARD · "WHO WOULD YOU CALL, AND WHEN?"

Sequence your SMEs to the lifecycle: **requiring activity / engineering** to nail the requirement and IGCE → **SB Specialist** at strategy (Rule of Two, DD 2579) → **FM** for color/availability of funds → **pricing / DCMA / DCAA** for analysis and audits → **Competition Advocate & policy** for J&A/D&A and clearance → **JA throughout** (and first on anything novel, sole-source, integrity, protest, claim, or termination) → **security/IP** when classification, CUI/CMMC, or data rights are in play. Naming the right partner at the right moment is exactly the judgment the board is grading.

— End of Volume 2 · AcqVault Field Guide —

Training aid only. Not legal advice. Verify all references against the RFO / R-DFARS before acting.